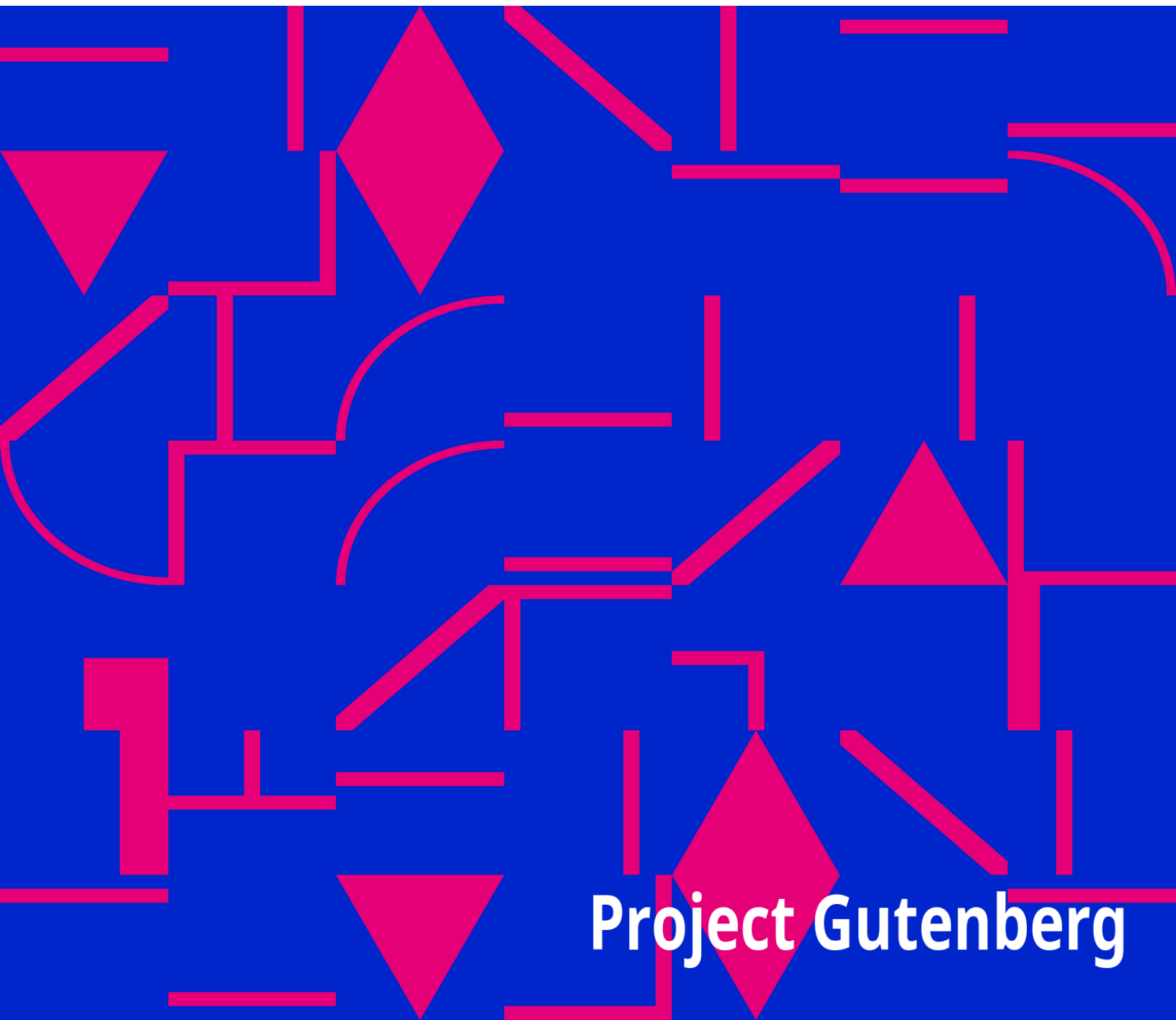


Chambers's Edinburgh Journal, No. 461

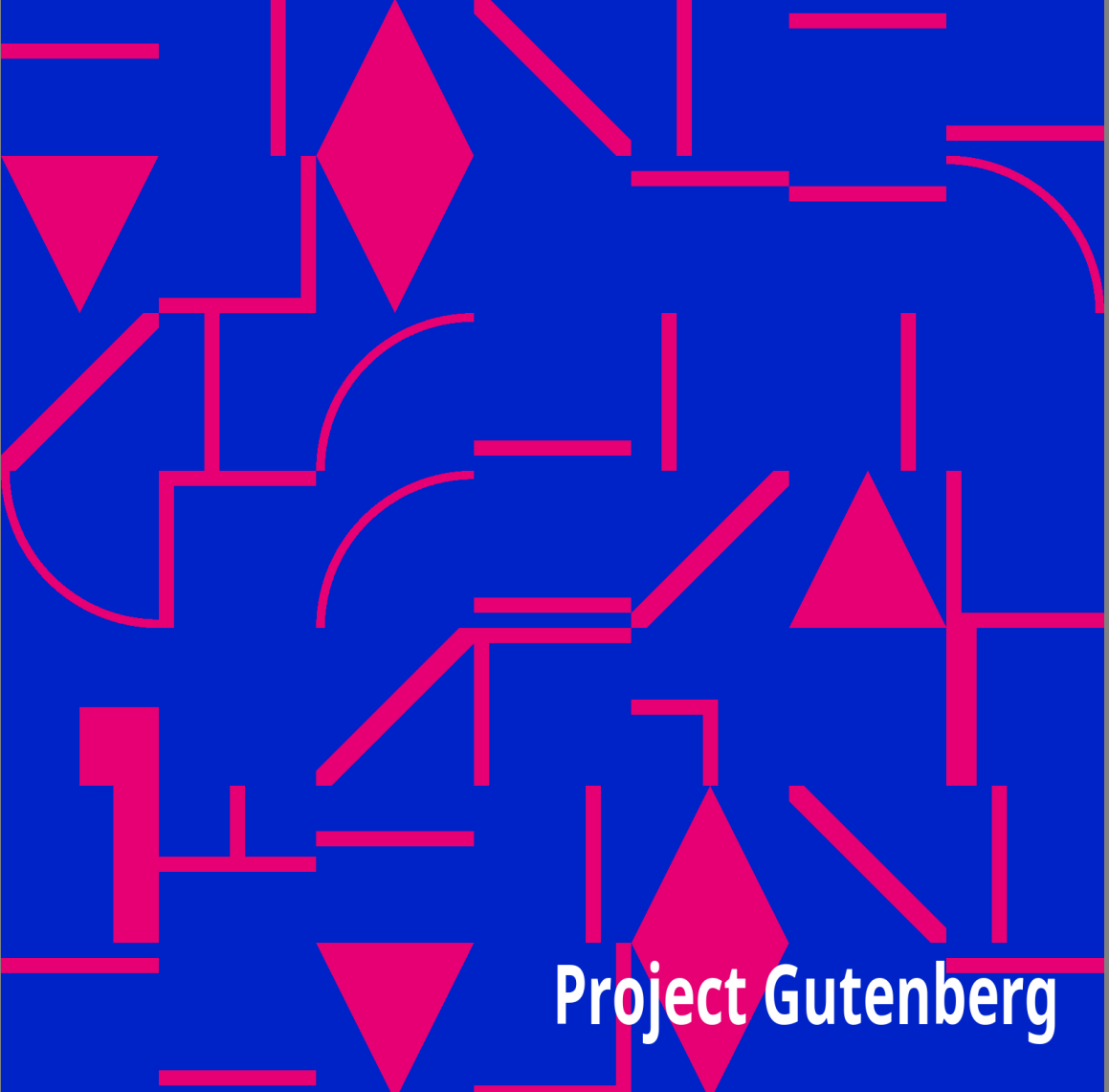
Various et al.

The background of the lower half of the image is a solid blue field. Overlaid on this field is a complex, abstract pattern of red geometric shapes. These shapes include various line segments, some horizontal, some vertical, and some at diagonal angles. There are also several triangles, some pointing upwards and some downwards. A prominent diamond shape is located in the upper left quadrant of the blue area. In the lower right, there is a large, solid red diamond. The overall effect is a dense, non-representational composition of primary colors and geometric forms.

Project Gutenberg

Chambers's Edinburgh Journal, No. 461

Various et al.



Project Gutenberg

The Project Gutenberg eBook of Chambers's Edinburgh Journal, No. 461

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Chambers's Edinburgh Journal, No. 461

Author: Various

Editor: Robert Chambers
William Chambers

Release date: January 12, 2008 [eBook #24261]

Language: English

Other information and formats: www.gutenberg.org/ebooks/24261

Credits: Produced by Malcolm Farmer, Richard J. Shiffer and the
Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK CHAMBERS'S
EDINBURGH JOURNAL, NO. 461 ***

CHAMBERS' EDINBURGH JOURNAL

CONTENTS

THE SLAVER.

THE 'ADVOCATE' AND ITS AUTHOR.

A NIGHT ADVENTURE.

VISIT TO A CHOCOLATE MANUFACTORY.

**THE WORKING-CLASSES IN 'THE GOOD
OLD TIMES.'**

**EXTRACTS FROM THE DIARY OF A
TRAVELLER IN CHILI.**

THINGS TALKED OF IN LONDON.

THE POET'S POWER.

**IMPORTANCE OF THE CULTIVATION OF
THE SENSES.**

AN AMERICAN NOTION.



**CONDUCTED BY WILLIAM AND ROBERT CHAMBERS,
EDITORS OF 'CHAMBERS'S INFORMATION FOR THE PEOPLE,'
'CHAMBERS'S EDUCATIONAL COURSE,' &c.**

No. 461. NEW SERIES. SATURDAY, OCTOBER 30, 1852. PRICE 1½d.

THE SLAVER.

[Return to Table of Contents](#)

ON the 18th day of February 1850, Her Majesty's steamship *Rattler* was lying at anchor about twenty miles to the northward of Ambriz, a slave depôt situated on the western coast of Africa. Week after week had passed away in dull uniformity; while the oppressive heat, the gentle breeze which scarcely ruffled the surface of the deep, and the lazy motion of the vessel as it rolled on the long unceasing swell that ever sets on that rocky shore, lulled the senses of all into a sleepy apathy. The only music that ever reached our ears was the eternal roar of that monotonous surf, as it licked the rugged beach with its snowy tongue.

A few miles off, a range of low brown hills, covered with a stunted vegetation, runs parallel with the shore—along their undulating sides, angular spires of granite project through the parched and scanty soil; while on their highest brow one solitary giant stands, resembling an obelisk, from which the anchorage derives its name, 'The Granite Pillar.' No appearance of human life or labour exists around; the whole is a desert, over which these columnar formations—resembling a city of the Titans, crumbling slowly into dust—hold an empire of solitude and death. The imagination is oppressed with a sense of utter desolation that withers every mental effort.

This day was passing like so many before it; the sun was low on the horizon, and its yellow beams were throwing a brassy tint over the sea and sky; the sailors were engaged, some fishing with patient assiduity, others, grouped into small knots, listening to prosy yarns; while a few were prostrated round the decks in attitudes of perfect abandonment or sleep. The officers were leaning over the taffrail, trying, with a sportsman-like anxiety worthy of better prey, to hook a shark, which was slowly meandering under the stern; or looking contemplatively into the dark-brown waves, either watching the many forms of animal life which floated by, or recalling to memory the dear objects of distant lands. The officer of the watch, with his spyglass under his arm, was pacing languidly his narrow round, when 'Sail

ho!' in clear and piercing tones, resounded from the mast-head, and with electric speed filled the dreamers with life and energy.

'Point to her,' cried the officer of the watch; while all eyes were directed to the look-out aloft, whose glass was immediately stretched to the north. Speculation now sits in every vacant eye, and conjecture on every silent tongue. The captain was at his post with vigilant alacrity. 'How is she standing? what sail is she under?' was soon answered, and the orders, 'Get the steam up, lower the propeller,' echoed round the decks, mingled with the shrill pipes of the boatswain's mates.

The men flew to their posts; and whilst the cumbrous screw was descending slowly into the water, the stokers had roused the smouldering embers into life.

'All hands up anchor!' The capstan revolves and creaks, as one and all of these willing men strain their starting muscles at the bars. The anchor reluctantly leaves its oozy bed; but the chinking of the cable, as it steadily ascends, reveals no change, until it swings at the bow.

'Go on ahead!' The steam whistles through its silent chambers, like sweet music, calling into life that ponderous mechanism, until it appears to dance with joy.

'Helm a-port—steady so!' The waves rise high on either bow as we dash through the foaming waters. Our distance from the object rapidly diminishes, while eager eyes are directed ahead, until it is seen from the deck. Hope fills the breast of the sanguine, despair that of the gloomy and desponding. Sure eyes and good telescopes soon descry the Yankee ensign floating aloft in lazy folds; and as we come still nearer, those accustomed to observe the shape of sails and set of masts, detect the peculiarities of an old acquaintance. It is the *Lucy Ann*, an American vessel of a very suspicious character, which has been frequently boarded by our cruisers, but has ever been protected by the flag of her apparent country.

We are soon alongside, and our captain boards her, to examine her 'papers' once again, and to ensnare, if possible, our wily enemy. On his return, we continue our course towards the Congo, whither they have been persuaded

we are going for water. No sooner, however, do the shades of evening protect our movements from observation, than we change our course, and proceed directly out to sea a hundred miles or so, to prevent her passing us in the dark should she take her slaves on board this night, as it is suspected she will do.

Daylight comes next morning, and the best telescopes from aloft sweep the horizon, but not a speck can be seen on that desert sea. The sails are stripped from the vessel's masts, and she lies like a dead log, round which, at the unwonted spectacle, shoals of dolphins and porpoises come to gambol. It was pleasant to have something like life near us, and though it belonged to another element, it seemed a connecting-link with the rest of the animated creation. One long hour after another had passed away, and the most hopeful began to despair, while the expressions of the desponding grew more energetic against the propriety of lying thus inactive; but Captain Cumming, as patient in biding his time as he is quick in resolving and acting when the moment arrives, only replied: 'Wait till to-morrow morning!' This arrived like the last, and every eye was turned towards the rising sun as it slowly emerged from the waves, not to gaze on the purple radiance that streamed from its broad disk, but with the expectation of seeing the object of our solicitude revealed by the light of the eastern sky. Each one turned slowly away, disappointed, as soon as he found that he had been looking in vain; but there appeared a sullen pleasure in the eyes of those who had been prophesying evil, as their predictions appeared to be fulfilled.

As a matter of precaution for whatever might happen, the steam was ready; orders were now given to proceed, and we steamed on slowly towards the land. One hour passed away thus, another, and nearly a third, when a negro, perched beside the main truck, sang out with all his lungs: 'Sail ho!' His keen sense of vision, outstripping that of his white comrade, distinguished as a small speck the lofty royals, while the vessel was far below the horizon. A smile of satisfaction wreathed with dimples even the grimest faces, when the object of our pursuit approached us near enough to be recognised. Without faltering, she came on steadily, with every sail set, and her banner proudly waving in the gentle breeze, forbidding search. Each eye

eagerly scrutinised her, speculation was busy, and the emotions were various as the temper and habit of each individual mind.

Having arrived alongside, our captain again boarded her in his gig. He was received politely, and without embarrassment, by the Yankee, who immediately offered refreshments, which were declined. Not a slave was to be seen, nor did there exist any smell, so universal a concomitant to indicate their presence. Some forty Brazilians, each with a cigar in his mouth, were loitering round the clean decks, while the crew were busy at the pumps, creating the greatest possible noise, in the accomplishment of which they were assisted by a flock of parrots and love-birds, perched in every direction.

Once more the ship's papers were produced, and carefully scanned, and the absence of one important document was detected. On being demanded, it was positively refused, and the presumption was thus created that it did not exist, and that therefore all were false.

These proceedings occupied a considerable time—a matter of preconcerted importance, as the suspicion was entertained that slaves were concealed below, and that soon the danger of impending suffocation would reveal the fact. Our chief took up a position near the main hatchway, and listened anxiously for the slightest indication. Various manœuvres were tried to get him away without success. The Brazilians were beginning to appear impatient; and on board the *Rattler*, whence, by telescopes, the proceedings were watched with deepest interest, the hopes of even the most sanguine were becoming faint, when Captain Cumming was observed to start, and point to the deck. He had heard the stifled sound of intolerable agony rise from below his feet, like a peal of distant thunder. The slaves were suffocating from want of air, and their dread of their jailers was extinguished in the immediate struggle for life.

In a moment, the American perceived that the game he had been so skilfully playing was lost, and his assumed coolness deserted him. In a voice choked with emotion, he rapidly uttered: 'She is a Brazilian. I am not the captain; this is,' pointing to a tawny Portuguese at his elbow.

'Haul down the flag, and hoist her proper colours.'

Down came that ensign, polluted by the traffic it protected, amid the cheers of our men, which made the welkin ring.

'Don't let the poor devils die,' cried the stout American mate, actuated by the generosity of the race he sprang from, which his degrading employment could not wholly stifle. Assisted by our men, who had jumped out of the boat, the hatches were soon removed, exposing to view a mass of human misery which, being once seen, must remain impressed on the memory for ever—the naked bodies of men, women, and children, writhing in a heap, contorted, gasping for air, sinking from exhaustion, and covered with sweat and foam. The darkness which surrounded them only deepened the shades, without concealing a single feature; whilst the dense and sickening steam which curled heavily up from the reeking mass, made it a picture too horrible to contemplate, and one the minute details of which must be left to haunt the memory of those who were unfortunate enough to witness it.

First one and then another endeavoured to ascend, but with a strength unequal to the task, they fell back into the mephitic abyss. Our men rushed forward to their aid, and catching hold of their imploring hands, placed them upon deck. There, prostrate and indiscriminately huddled together, they gradually recovered from the effects of that terrible confinement, where 547 human beings were, without a breath of fresh air, kept for above two hours crushed together in a space only about three feet in height, and with a superficial extent not equal to that of their bodies, unless in a sitting position! The ordeal proved too much for the vital energy of above twenty, who perished one by one during the next fortnight or three weeks, without having felt the blessing of freedom.

An officer with a few men were immediately placed in charge of the prize, and navigated it to St Helena. The slaves, when there, are declared free, but upon conditions such as render it generally necessary for them to emigrate to the West Indies, to become, let us hope, happy and useful members of a British colony.

The Brazilians and American crew were taken on board the *Rattler*, and conveyed back to Ambriz, from thence, in all probability, to return to their horrible trade, in the hope of being more successful on another occasion. The captain was seen a few months afterwards, in another American vessel,

returning from the Brazils, prepared, in all likelihood, to play a similar game with better success from the lesson he had received. The opportunity afforded us of observing the character of these men, produced a more favourable feeling towards them than was at first sight entertained. Several pleaded honourable motives for the degraded position in which they felt themselves placed, and nearly all would have done credit to a more respectable calling.

Our gallant chief's calculations were found to have been rigidly correct. That night after we left them, they believed that a boat would be detached to watch their movements; they therefore anchored, and waited for daylight. When that arrived without an enemy in sight, they felt secure.

The slaves, worn out by previous marching and counter-marching to shipping places, where their embarkation was prevented by the vigilance of our cruisers, rendered it almost a matter of necessity that they should now be taken on board. Their bodies had been galled and emaciated by the chains they carried, by the slender store of dry farina—the only food provided for them—and by the precarious and scanty supply of water obtainable on the arid plains or in the tangled forests they had traversed. The first canoe-load was taken alongside the ship about four o'clock in the afternoon, and in an hour the whole were on board. This is reckoned the most favourable time for getting under-way, as darkness enables them to leave the land without danger of being observed.

The preceding is a faithful picture of one of the melancholy incidents belonging to the hateful traffic in slaves. Let us hope that the time has at length nearly arrived which has been so long waited for, when we may say with truth, it is abolished; leaving only the memory of it to darken the page of history, and remain a moral lesson to mankind.

THE 'ADVOCATE' AND ITS AUTHOR.

[Return to Table of Contents](#)

LITERARY talents and habits are fortunately not always dissociated from world-like conduct and skill in affairs. We have now become familiar with a class of men who, while cultivating even the more flowery fields of the Muses, are not on that account the less distinguished in their professional walks, or by the active part they take in the great practical movements of the age. The public, which does not readily admit of two ideas respecting any one man, is apt to lose sight of the literary in the worldly merit; but the former does not the less exist, and perhaps in time it will be equally acknowledged. We regard Mr Cox, author of the book under notice, as a remarkable example of the union of the man of affairs with the author. We learn, from a local record,^[1] that he rose, about twenty years ago as an attorney in a western town, and took an active part in the fervid political doings of 1830-31. Ambitious of higher professional honours, he removed to London, and entered at the bar. In the course of eight or nine years, he has proceeded from one adventure to another, till he is now one of the most multiform of men. Not merely does he follow a strictly professional course as a barrister, but he conducts several periodical works of a laborious nature—the *Law Times* (newspaper), the *Magistrate*, the *County Courts' Chronicle*, and a series of Criminal Law Cases. For the preparation of these works, he has a printing establishment, the management of which would be a sufficient occupation for most men. It gives work to 250 persons, and 10,000 business accounts are kept in it. As if all these engagements were not enough, Mr Cox has established the well-known literary periodical work (fortnightly) the *Critic*. The conducting of a work designed to report upon the current literature of the day is perhaps one of the most delicate of tasks, for the critics necessarily are themselves authors, are the friends and enemies of authors, and are of course liable to all the usual fallacies which beset human judgment. Hence it is that we see one such work lose credit through its universal benevolence, and another rush to the opposite extreme, of asserting independence by an unvarying tone of rancour and dissatisfaction—obviously a not less unjust course both to literary men and

the public, and in the long-run, equally sure to destroy the credit of the men who adopt it. Amidst the difficulties proper to such a task, we believe the *Critic* has hitherto steered a comparatively irreproachable course, keeping mainly in view a faithful and painstaking *account* of every book submitted to its notice, and neither trading upon the smiles nor the groans of authors. Of a warm and cordial nature, and with an intense love of literature, he seems to have known how to encourage genius, even while pointing to its errors; and, if we may judge by the internal evidence of the work itself, he has succeeded in rallying round him many of the high and generous spirits of the time. The *Critic* is distinguished by a more than usual proportion of thought, and by very little of the small superficial cant of criticism.

It will excite some surprise that Mr Cox has found time, amidst his numberless duties, to prepare a professional work of considerable magnitude, and of solid merit and utility. Such, we take leave to say, is the *Advocate*, of which the first volume is now before us.^[2] It is a book which, though intended primarily for young legal aspirants, will also instruct, and indeed entertain the public. It is more than this for those who can pursue the spirit of a work through its details, and see the character of an individual or a class rising palpably out of reasonings, maxims, and material circumstances. Such readers will give a hero to the pages before us, and follow him in his career with more than the interest that waits upon romance. They will observe, in the first place, his natural advantages: 'Has he a healthy frame, capable of enduring long-continued exertion of mind and body, the confinement of the study, the excitement of practice, the crowded court by day, the vigil of thought by night? Can he subsist with a sleep of five hours? Can he, without dyspepsy, endure irregular meals—hasty eatings and long fastings? If he be not blessed by nature with the vigorous constitution that will bear all this, and more, let him not dream of adventuring into the arena of advocacy.' Good lungs and a strong voice are indispensable: strong rather than agreeable—let him even scream or squeak, as some of his brethren do, but scream or squeak with *power*. His mental qualifications are—keen and rapid perception, sound judgment, power of concentration, and that imagination which paints in words. Of these, the first is the cornerstone of the mental character of the advocate. Of the moral qualities, courage and self-confidence must be combined with caution, and the whole elevated by honesty and truthfulness of nature. At this point the

philosophical reader will perhaps demur, and inquire whether those clients who are in the wrong find any difficulty in obtaining the most talented defenders—for a con-si-der-ation. But we will postpone that issue.

In addition to his natural qualifications, the advocate must possess what is called a small pecuniary independence: 'The practical conclusion we would deduce from the review we have taken of the expenses unavoidably attendant upon the profession of advocate, and which amount at the least to L.650 previous to his call, and to L.250 per annum afterwards, is this:—Let no man who values his happiness, or his ultimate success in life, make the bar his profession, unless he has resources, other than his profession, upon which he can rely for a clear income of L.150 per annum at the least. This will still leave L.100 to be provided for by that profession; but that is a risk he may not unreasonably run, if conscious that, in all other respects, he is qualified for ultimate success. With less than that, it would be unwise to incur the hazard. With no resources, as is sometimes seen, it is madness.'

The aspirant to the bar must methodise his time. 'In mapping out the day, make ample allowance for rest and for refreshment. Nothing is gained in the end by unduly abbreviating these. Provided you work without wasting a moment in your working-hours, you can afford to be liberal in your apportionment of time to exercises of the body and relaxations of the mind. Above all, and at whatever sacrifice, begin your allotment by devoting two hours at the least in each day to active bodily exercise, and give one of these to the early morning, and the other to the evening. So with your meals. First consult health, without which your studies will be unproductive, and your hopes of future success blighted. Thus, then, would stand the account for the day:—Exercise, two hours; meals and rest, three; sleep, seven; for study, twelve.' Twelve hours for study would be too long, if he did not make study itself a recreation by means of variety. 'The profound should be exchanged for the more superficial; the grave for the gay; such as engage the reasoning powers for those which appeal rather to the perception or the memory. Natural science should take its turn with law; languages with logic; rhetoric with mathematics, and such like—an entire change in the faculties employed being in fact a more perfect relief than entire rest.' An hour to the more difficult law-books is enough at a time, but that hour should alternate frequently with lighter studies. Educational and

professional studies—physical training—and exercise in the art of speaking, are all of high importance; and it will be found that our author's advice on the subject is worth attending to. The education of the aspirant must be completed in the chambers—first, of a conveyancer; second, of a special pleader (or, if aiming at the equity bar, of an equity draughtsman); and third, of a general practitioner. As for his formal and nominal studentship in the Inns of Court, that merely serves prescriptively to qualify him for his call to the bar. 'If he purposes to practise as a conveyancer, or at the equity bar, he should enter himself at Lincoln's Inn; but if he designs to practise the common law, either as a special pleader, or immediately as an advocate, his choice lies between the Inner and Middle Temple and Gray's Inn,' The Inner Temple is the most select; the Middle Temple the most varied in its society; and Gray's Inn the most liberal in its table. Having chosen his Inn, 'he must obtain the certificate of two barristers, members of the society, together with that of a bencher, that he is a fit person to be received into it;' and he is admitted, as a matter of course.

Many of our readers, on entering the City, through Temple Bar, have seen a small open gateway on the right hand. It is a quiet, retired-looking place, grave, and somewhat gloomy; and in contrast with Fleet Street, and its torrent of population, is rather striking and remarkable. Yet, hurried away by the living stream, they have doubtless passed on, and perhaps have forgotten to inquire to what that solemn avenue leads. Let them enter, the next opportunity they have, and make use of their own eyes. 'A few paces, and you are beyond the roar of wheels and the tramp of feet. Tall, gloomy, smoke-embrowned buildings, whose uniformity of dulness is not disturbed by windows incrustated with the accumulated dust of a century, hem you in on either side, and oppress your breathing as with the mildewy atmosphere of a vault. The dingy ranks of brick are broken by very narrow alleys; and here and there, peeping under archways, you may espy little paved court-yards, with great pumps scattering continual damp in the midst of them, and enclosed with just such dusky walls and dirty windows as you have already noticed. You are amazed at the silence that prevails in these retreats, so near the living world, and yet so entirely secluded from it. But not less will you be interested by the peculiar appearance of the persons you meet in this place. The majority of them carry packets of written papers tied about with red tape, and folded after a fashion here invariably observed.... First, and

most abundant, are certain short, thin-visaged, spare-limbed, keen-featured, dapper-looking men, who appear as if they had never been young and would never be old, clothed in habiliments of sober hue, seemingly as unchangeable as themselves. They walk with a hurried step, and a somewhat important swing of the unoccupied arm. A smaller packet of the aforesaid tape-tied paper peeps from either pocket; they look right on, and hasten forward as if the fortunes of half the world rested upon their shoulders, and the wisdom in the briefs at their elbow had all been distilled from the skull covered by that napless hat. If you do not move out of the way, you will probably be knocked down and trodden upon by them—unconsciously of course. They are *attorneys' clerks*.

'The second species found in this region are more youthful in aspect, carry themselves with more swagger, wear their hats jantly, with greasy curls coaxed to project beyond the brim. They affect a sort of secondhand gentility, cultivate great brooches, silver guard-chains, and whiskers, and have the air of persons claiming vice-royalty in the dominions in which they live and move and have their being. They are *barristers' clerks*.

'The third class are gentlemanly but very shabbily dressed men, who look as if they were thinking of something beside themselves. They are of all ages, and statures, and complexions; of feature of all degrees of ugliness *in form* and beauty of *expression*. You cannot mistake them; there is a family-likeness running through all of them. They are *barristers*.

'The fourth species are composed of men of busy, bustling aspect, arrayed for the most part in garments of formal cut, and of the fashion of a bygone day. They *always* look as ordinary men do when told on some pressing emergency to "look sharp." Their countenances, motions, and gait express thought and anxiety. They hurry onward, noticing nothing and nobody. They are *attorneys*.

'Lastly, you discern a few wasted forms and haggard faces, on which lines are traced by the icy finger of Disappointment, and garments, growing ragged, ill protect from the keen draughts that play through these passages hearts aching with the sickness of hope deferred. The pockets, though tightly buttoned, are lank and light. They step briskly and eagerly onward, if

entering; they creep slowly, if passing out toward the street. They are *clients*.'

This is the Temple, and these are its denizens; but in pursuing your way, as you emerge suddenly from the huge masses of building in which you have been swallowed up, you see with new surprise an open area of green turf, with beds of flowers, rows of trees, and leafy walks, and shady seats; and hear the fit and natural accompaniments of such a scene—the shrill voices of children, and the silvery laugh of ladies as they stroll through the Temple Gardens. Groups of law-students, too, 'are lounging there, laughing and talking; and a few solitary youths, with pale faces and earnest eyes, are poring upon great books in professional bindings, heedless of the attractions of tree or flower, or child or woman.'

Beyond the garden is the great water highway of the metropolis, the princely Thames, with its crowding barges, its flashing skiffs, and sweeping steamers. Among the gloomy buildings there is *yet* another garden-plot, with a fountain in constant play; and yet another, a smooth-shaven lawn, with paths and flower-beds, on the brink of the river. 'Here, in this garden of the Middle Temple, there is no human presence to disturb the profound quiet of the place, as in the more spacious garden of the Inner Temple which you have lately quitted. Seats are scattered about, and pretty summer-houses invite to study or contemplation, but they are unoccupied by any visible presence. One is inclined to imagine that the Benchers have dedicated this garden to the exclusive occupation of the dead luminaries of the law, as the garden on the other side is devoted to its living oracles. With such a fancy, we always feel disposed to take off our hat to the invisibles, as we pass the tranquil spot where we suppose them to be "doomed for a certain time to walk."' "

A red building on the right is the magnificent hall of the Middle Temple, with the carved screen of oak taken from the Spanish Armada. This is the hall in which the Templar eats his way to the bar; but if he should have no appetite for such dinners, it is not necessary that he should devour more than three, provided he pays for the whole fourteen. 'Shortly before the hand on the dial over the doorway points to five, crowds of gentlemen may be seen hurrying through the labyrinthine paths that intersect the Temple in

all directions, and concentrating at the yard before the hall, for dinner there waits for no man, and, better still, no man waits for dinner. Gowns are provided for the student in the robing-room, for the use of which a small term-fee is paid, and, thus habited, he is introduced into the Hall. But it is now no longer hushed and sombre, but a scene of brightness and bustle. The tables are spread for dinner in close and orderly array; wax-lights in profusion blaze upon them; a multitude of gowned men are lounging on the seats, or talking in groups, or busily looking out for the most agreeable places, which are secured by simply placing the spoon in the plate. Suddenly a single loud thump is heard at the door. All rush to their seats: it is opened wide; the servants range themselves on either side, and between their bowing ranks behold the benchers enter in procession, and march to the dais allotted to them. The steward strikes the table three times with his hammer to command silence, says a grace before meat, and the feast begins.' Gradations of rank are closely observed. 'The benchers' tables are ranged upon the dais, across the hall. The tables in the body of the hall are placed lengthwise, the barristers occupying those nearest to the dais, and the students taking the others indiscriminately. They are laid so as to form messes for four, each mess being provided with distinct dishes, and making a party of itself. The persons who chance to be seated at the same mess need no other introduction; he who sits at the head is called "the captain;" he first carves for himself, and then passes the dishes to the others in due order. The society presents each mess with a bottle of wine—always port—a custom which might be most advantageously violated.'

The Temple is not exactly a part of the United Kingdom: it is rather a tributary state. It preserves its own peace, collects its own taxes, and laughs at the City, with whose municipal burthens it has nothing to do. The inhabitants may live in town or country, as they please, for both are within the domain. They may occupy an attic, a first floor, a parlour, an area, just as they like. The Templar seems in constant sanctuary, where no one dares intrude upon him but his laundress and his clerk. Both these, as figured by our author, are admirable specimens of the natural history of the Temple; but we have no room to give them entire, and must not spoil them by abridgment. Besides, the aspirant waits: he is not yet called.

The call consists in his proposal by a bencher, the posting of his name in the hall, his arraying himself in a gown and wig, his taking the oath of abjuration, supremacy, and allegiance, his being bowed to by the bench of benchers, and his treating his friends after dinner to as much dessert and wine as they can hold. He is now an Advocate, and selects his circuit. 'To every circuit there belongs a band of gentlemen who were never known to hold a brief, to whom nobody ever dreamed of offering a brief, and who, if it had been offered, would probably have declined it. Yet they travel the entire circuit, are punctual in bowing to the judge at the opening of the court in the morning, sit there with heroic patience all the day through, nor leave until his lordship announces that he will "take no other case after *that*," when they look delighted, rise like school-boys released, and rush from the court to enjoy half an hour's holiday before dinner.' This is a sad companionship to get into; yet regularity in attending even an unproductive circuit is necessary to eventual success. The Bar must enter the assize town on the same day, that they may all start fair; they must not live in a hotel, but take lodgings; and they must not, while on the circuit—that is, in their professional character—shake hands with an attorney.

We have now started our hero fairly in his profession, and we must refer to the book itself for his adventures in practice. No less than eleven chapters are devoted to this part of his life, and yet the volume before us, although separately published, is only the *first* volume. We have said and quoted enough to shew that Mr Cox possesses in an eminent degree the versatility of talent so necessary in a literary man of the present day; and we lay down the *Advocate* with the conviction, that it possesses much that is new, suggestive, wholesome, and instructive, as well as much that is interesting and entertaining.

FOOTNOTES:

[1] The *Somerset County Gazette*.

[2] *The Advocate, his Training, Practice, Rights, and Duties*. By Edward W. Cox, Esq., Barrister-at-Law. London: Law Times Office. 1852.

A NIGHT ADVENTURE.

[Return to Table of Contents](#)

I WILL tell you all about an affair—important as it proved to me; but you must not hurry me. I have never been in a hurry since then, and never will. Up till that time inclusive, I was always in a hurry; my actions always preceded my thoughts; experience was of no use; and anybody would have supposed me destined to carry a young head upon old shoulders to the grave. However, I was brought up at last 'with a round turn.' I was allowed a certain space for reflection, and plenty of materials; and if it did not do me good, it's a pity!

My father and mother both died when I was still a great awkward boy; and I, being the only thing they had to bequeath, became the property of a distant relation. I do not know how it happened, but I had no near relations. I was a kind of waif upon the world from the beginning; and I suppose it was owing to my having no family anchorage that I acquired the habit of swaying to and fro, and drifting hither and thither, at the pleasure of wind and tide. Not that my guardian was inattentive or unkind—quite the reverse; but he was indolent and careless, contenting himself with providing abundantly for my schooling and my pocket, and leaving everything else to chance. He would have done the same thing to his own son if he had had one, and he did the same thing to his own daughter. But girls somehow cling wherever they are cast—anything is an anchorage for them; and as Laura grew up, she gave the care she had never found, and was the little mother of the whole house. As for the titular mother, she had not an atom of character of any kind. She might have been a picture, or a vase, or anything else that is useless except to the taste or the affections. But mamma was indispensable. It is a vulgar error to suppose that people who have nothing in them are nobody in a house. Our mamma was the very centre and point of our home feelings; and it was strange to observe the devout care we took of a personage, who had not two ideas in her head.

It is no wonder that I was always in a hurry, for I must have had an instinctive idea that I had my fortune to look for. The governor had nothing more than a genteel independence, and this would be a good deal lessened after his death by the lapse of an annuity. But sister Laura was thus provided for well enough, while I had not a shilling in actual money, although plenty of hypothetical thousands and sundry castles in the air. It was the consciousness of the latter kind of property, no doubt, that gave me so free-and-easy an air, and made me so completely the master of my own actions. How I did worry that blessed old woman! how Laura lectured and scolded! how the governor stormed! and how I was forgiven the next minute, and we were all as happy again as the day was long! But at length the time of separation came. I had grown a great hulking fellow, strong enough to make my bread as a porter if that had been needed; and so a situation was found for me in a counting-house at Barcelona, and after a lecture and a hearty cry from sister Laura, a blessing and a kiss from mamma, and a great sob kept down by a hurricane laugh from the governor, I went adrift.

Four years passed rapidly away. I had attained my full height, and more than my just share of inches. I already enjoyed a fair modicum of whisker, and had even made some progress in the cultivation of a pair of moustaches, when suddenly the house I was connected with failed. What to do? The governor insisted upon my return to England, where his interest among the mercantile class was considerable; Laura hinted mysteriously that my presence in the house would soon be a matter of great importance to her father; and mamma let out the secret, by writing to me that Laura was going to 'change her condition.' I was glad to hear this, for I knew he would be a model of a fellow who was Laura's husband; and, gulping down my pride, which would fain have persuaded me that it was unmanly to go back again like the ill sixpence, I set out on my return home.

The family, I knew, had moved to another house; but being well acquainted with the town, I had no difficulty in finding the place. It was a range of handsome buildings which had sprung up in the fashionable outskirts during my absence; and although it was far on in the evening, my accustomed eyes soon descried through the gloom the governor's old-fashioned door-plate. I was just about to knock, really agitated with delight and struggling

memories, when a temptation came in my way. One of the area-windows was open, gaping as if for my reception. A quantity of plate lay upon a table close by. Why should I not enter, and appear unannounced in the drawing-room, a sunburnt phantom of five feet eleven? Why should I not present the precise and careful Laura with a handful of her own spoons and forks, left so conveniently at the service of any area-sneak who might chance to pass by? Why? That is only a figure of speech. I asked no question about the matter; the idea was hardly well across my brain when my legs were across the rails. In another moment, I had crept in by the window; and chuckling at my own cleverness, and the great moral lesson I was about to teach, I was stuffing my pockets with the plate.

While thus engaged, the opening of a door in the hall above alarmed me; and afraid of the failure of my plan, I stepped lightly up the stair, which was partially lighted by the hall-lamp. As I was about to emerge at the top, a serving-girl was coming out of a room on the opposite side. She instantly retreated, shut the door with a bang, and I could hear a half-suppressed hysterical cry. I bounded on, sprang up the drawing-room stair, and entered the first door at a venture. All was dark, and I stopped for a moment to listen. Lights were hurrying across the hall; and I heard the rough voice of a man as if scolding and taunting some person. The girl had doubtless given the alarm, although her information must have been very indistinct; for when she saw me I was in the shadow of the stair, and she could have had little more than a vague impression that she beheld a human figure. However this may be, the man's voice appeared to descend the stair to the area-room, and presently I heard a crashing noise, not as if he was counting the plate, but rather thrusting it aside *en masse*. Then I heard the window closed, the shutters bolted, and an alarm-bell hung upon them, and the man reascended the stair, half scolding, half laughing at the girl's superstition. He took care notwithstanding to examine the fastenings of the street-door, and even to lock it, and put the key in his pocket. He then retired into a room, and all was silence.

I began to feel pretty considerably queer. The governor kept no male servant that I knew of, and had never done so. It was impossible he could have introduced this change into his household without my being informed of it by sister Laura, whose letters were an exact chronicle of everything,

down to the health of the cat. This was puzzling. And now that I had time to think, the house was much too large for a family requiring only three sleeping-rooms even when I was at home. It was what is called a double house, with rooms on both sides of the hall; and the apartment on the threshold of which I was still lingering appeared, from the dim light of the windows, to be of very considerable size. I now recollected that the quantity of plate I had seen—a portion of which at this moment felt preternaturally heavy in my pockets—must have been three times greater than any the governor ever possessed, and that various pieces were of a size and massiveness I had never before seen in the establishment. In vain I bethought myself that I had seen and recognised the well-known door-plate, and that the area from which I entered was immediately under; in vain I argued that since Laura was about to be married, the extra quantity of plate might be intended to form a part of her *trousseau*: I could not convince myself. But the course of my thoughts suggested an idea, and pulling hastily from my pocket a tablespoon, I felt, for I could not see, the legend which contained my fate. But my fingers were tremulous: they seemed to have lost sensation—only I fancied I did feel something more than the governor's plain initials. There was still a light in the hall. If I could but bring that spoon within its illumination! All was silent; and I ventured to descend step after step—not as I had bounded up, but with the stealthy pace of a thief, and the plate growing heavier and heavier in my pocket. At length I was near enough to see, in spite of a dimness that had gathered over my eyes; and, with a sensation of absolute faintness, I beheld upon the spoon an engraved crest—the red right hand of a baronet!

I crept back again, holding by the banisters, fancying every now and then that I heard a door open behind me, and yet my feet no more consenting to quicken their motion than if I had been pursued by a murderer in the nightmare. I at length got into the room, groped for a chair, and sat down. No more hurry now. O no! There was plenty of time; and plenty to do in it, for I had to wipe away the perspiration that ran down my face in streams. What was to be done? What *had* I done? Oh, a trifle, a mere trifle. I had only sneaked into a gentleman's house by the area-window, and pocketed his tablespoons; and here I was, locked and barred and belled in, sitting very comfortably, in the dark and alone, in his drawing-room. Very particularly comfortable. What a capital fellow, to be sure! What an

amusing personage! Wouldn't the baronet laugh in the morning? Wouldn't he ask me to stay breakfast? And wouldn't I eat heartily out of the spoons I had stolen? But what name is that? Who calls me a housebreaker? Who gives me in charge? Who lugs me off by the neck? I will not stand it. I am innocent, except of breaking into a baronet's house. I am a gentleman, with another gentleman's spoons in my pocket. I claim the protection of the law. Police! police!

My brain was wandering. I pressed my hand upon my wet forehead, to keep down the thick-coming fancies, and determined, for the first time in my life, to hold a deliberate consultation with myself. I was in an awkward predicament—it was impossible to deny the fact; but was there anything really serious in the case? I had unquestionably descended into the wrong area, the right-hand one instead of the left-hand one; but was I not as unquestionably the relation—the distant relation—the very distant relation—of the next-door neighbour? I had been four years absent from his house, and was there anything more natural than that I should desire to pay my next visit through a subterranean window? I had appropriated, it is true, a quantity of silver-plate I had found; but with what other intention could I have done this than to present it to my very distant relation's daughter, and reproach her with her carelessness in leaving it next door? Finally, I was snared, caged, trapped—door and window had been bolted upon me without any remonstrance on my part—and I was now some considerable time in the house, unsuspected, yet a prisoner. The position was serious; but come, suppose the worst, that I was actually laid hold of as a malefactor, and commanded to give an account of myself. Well: I was, as aforesaid, a distant relation of the individual next door. I belonged to nobody in the world, if not to him; I bore but an indifferent reputation in regard to steadiness; and after four years' absence in a foreign country, I had returned idle, penniless, and objectless—just in time to find an area-window open in the dusk of the evening, and a heap of plate lying behind it, within view of the street.

This self-examination was not encouraging; the case was decidedly queer; and as I sat thus pondering in the dark, with the spoon in my hand, I am quite sure that no malefactor in a dungeon could have envied my reflections. In fact, the evidence was so dead against me, that I began to

doubt my own innocence. What was I here for if my intentions had really been honest? Why should I desire to come into any individual's area-window instead of the door? And how came it that all this silver-plate had found its way into my pockets? I was angry as well as terrified: I was judge and criminal in one; but the instincts of nature got the better of my sense of justice, and I rose suddenly up, to ascertain whether it was not possible to get from the window into the street.

As I moved, however, the horrible booty I had in my pockets moved likewise, appearing to me to shriek, like a score of fiends, 'Police! police!' and the next instant I heard a quick footstep ascending the stair. Now was the fateful moment come! I was on my feet; my eyes glared upon the door; my hands were clenched; the perspiration had dried suddenly upon my skin; and my tongue clave to the roof of my mouth. But the footstep, accompanied by a gleam of light, passed—passed; and from very weakness I sat down again, with a dreadful indifference to the screams of the plate in my pockets. Presently there were more footsteps along the hall; then voices; then drawing of bolts and creaking of locks; then utter darkness, then silence—lasting, terrible, profound. The house had gone to bed; the house would quickly be asleep; it was time to be up and doing. But first and foremost, I must get rid of the plate. Without that hideous *corpus delicti*, I should have some chance. I must, at all hazards, creep down into the hall, find my way to the lower regions, and replace the accursed thing where I found it. It required nerve to attempt this; but I was thoroughly wound up; and after allowing a reasonable time to elapse, to give my enemies a fair opportunity of falling asleep, I set out upon the adventure. The door creaked as I went out; the plate grated against my very soul as I descended the steps; but slowly, stealthily, I crept along the wall; and at length found myself on the level floor. There was but one door on that side of the hall, the door which led to the area-room—I recollect the fact distinctly—and it was with inexpressible relief I reached it in safety, and grasped the knob in my hand. The knob turned—but the door did not open: it was locked; it was my fate to be a thief; and after a moment of new dismay, I turned again doggedly, reached the stair, and re-entered the apartment I had left.

It was like getting home. It was snug and private. I had a chair there waiting me. I thought to myself, that many a man would take a deal of trouble to

break into such a house. I had only sneaked. I wondered how Jack Shepherd felt on such occasions. I had seen him at the Adelphi in the person of Mrs Keeley, and a daring little dog he was. He would make nothing of getting down into the street from the window, spoons and all. I tried this: the shutters were not even closed, and the sash moving noiselessly, I had no difficulty in raising it. I stepped out into the balcony, and looked over. Nothing was to be seen but a black and yawning gulf beneath, guarded by the imaginary spikes of an invisible railing. Jack would have laughed at this difficulty; but then he had more experience in the craft than I, and was provided with all necessary appliances. As for me, I had stupidly forgotten even my coil of rope. The governor's house, I found, had either no balcony at all, or it was too far apart to be reached. Presently I heard a footstep on the *trottoir*, a little way off. It was approaching with slow and measured pace: the person was walking as calmly and gravely in the night as if it had been broad day. Suppose I hailed this philosophical stranger, and confided to him, in a friendly way, the fact that the baronet, without the slightest provocation, had locked me up in his house, with his silver spoons in my pocket? Perhaps he would advise me what to do in the predicament. Perhaps he would take the trouble of knocking at the door, or crying fire, and when the servants opened, I might rush out, and so make my escape. But while I was looking wistfully down to see if I could not discern the walking figure, which was now under the windows, a sudden glare from the spot dazzled my sight. It was the bull's-eye of a policeman; and with the instinct of a predatory character, I shrunk back trembling, crept into the room, and shut the window.

By this time I was sensible that there was a little confusion in my thoughts, and by way of employing them on practical and useful objects, I determined to make a tour of the room. But first it was necessary to get rid, somehow or other, of my plunder—to plant the property, as we call it; and with that view I laid it carefully, piece by piece, in the corner of a sofa, and concealed it with the cover. This was a great relief. I almost began to feel like the injured party—more like a captive than a robber; and I groped my way through the room, with a sort of vague idea that I might perhaps stumble upon some trap-door, or sliding-panel, which would lead into the open air, or, at worst, into a secret chamber, where I should be safe for any given number of years from my persecutors. But there was nothing of the kind in this stern, prosaic

place: nothing but a few cabinets and tables, and couches, and arm-chairs, and common-chairs, and devotional-chairs; and footstools, and lamps, and statuettes, and glass-shades, and knick-knacks; and one elaborate girandole hung round with crystal prisms, which played such an interminable tune against each other when I chanced to move them, that I stumbled away as fast as I could, and subsided into a *fauteuil* so rich, so deep, that I felt myself swallowed up, as it were, in its billows of swan's down.

How long I had been in the house by this time, I cannot tell. It seemed to me, when I looked back, to form a considerable portion of a lifetime. Indeed, I did not very well remember the more distant events of the night; although every now and then the fact occurred to me with startling distinctness, that all I had gone through was only preliminary to something still to happen; that the morning was to come, the family to be astir, and the housebreaker to be apprehended. My reflections were not continuous. It may be that I dozed between whiles. How else can I account for my feeling myself grasped by the throat, to the very brink of suffocation, by a hand without a body? How else can I account for sister Laura standing over me where I reclined, pointing to the stolen plate on the sofa, and lecturing me on my horrible propensities till she grew black in the face, and her voice rose to a wild unearthly scream which pierced through my brain?

When this fancy occurred, I started from my recumbent posture. A voice was actually in my ears, and a living form before my eyes: a lady stood contemplating me, with a half-scream on her lips, and the colour fading from her cheek; and as I moved, she would have fallen to the ground, had I not sprung up and caught her in my arms. I laid her softly down in the *fauteuil*. It was the morning twilight. The silence was profound. The boundaries of the room were still dim and indistinct. Is it any wonder that I was in some considerable degree of perplexity as to whether I was not still in the land of dreams?

'Madam,' said I, 'if you are a vision, it is of no consequence; but if not, I want particularly to get out.'

'Offer no injury,' she replied, in a tremulous voice, 'and no one will molest you. Take what you have come for, and begone.'

'That is sooner said than done. The doors and windows below are locked and bolted; and beneath those of this room the area is deep, and the spikes sharp. I assure you, I have been in very considerable perplexity the whole of last night;' and drawing a chair, I sat down in front of her. Whether it was owing to this action, or to my complaining voice, or to the mere fact of her finding herself in a quiet tête-à-tête with a housebreaker, I cannot tell; but the lady broke into a low hysterical laugh.

'How did you break in?' said she.

'I did not break: it is far from being my character, I assure you. But the area-window was open, and so I just thought I would come in.'

'You were attracted by the plate! Take it, for Heaven's sake, desperate man, and go away!'

'I did take some of it, but with no evil intention—only by way of amusement. Here it is;' and going to the sofa, I drew off the cover, and shewed her the plant.

'You have been generous,' said she, her voice getting quaverous again; 'for the whole must have been in your power. I will let you out so softly that no one will know. Put up in your pockets what you have risked so much to possess, and follow me.'

'I will follow you with pleasure,' said I, 'were it all the world over;' for the increasing light shewed me as lovely a creature as the morning sun ever shone upon; 'but as for the plunder, you must excuse me there: I never stole anything before, and, please Heaven, I never will again!'

'Surely you are a most extraordinary person,' said the young lady suddenly, for the light seemed to have made a revelation to her likewise: 'you neither look nor talk like a robber.'

'Nor am I. I am not even a robber—I am nothing; and have not property in the world to the value of these articles of plate.'

'Then if you are not a robber, why are you here?—why creep in at the area-window, appropriate other people's spoons, and get locked up all night in their house?'

'For no other reason, than that I was in a hurry. I had come home from Barcelona, and was going in to my guardian's, next door, when your unfortunate area-window caught my eye, with the plate on the table inside. In an instant, I was over the rails and in through the window like a harlequin, with the intention of giving the family a pleasing surprise, and my old monitress, sister Laura, a great moral lesson on the impropriety of her leaving plate about in so careless a way.'

'Then you are Gerald, my dear Laura's cousin, so longingly expected—so beloved by them all—so'——Here the young lady blushed celestial rosy red, and cast down her eyes. What these two girls could have been saying to each other about me, I never found out; but there was a secret, I will go to death upon it.

She let me out so quietly, that neither her father nor the servants ever knew a syllable about the matter. I need not say how I was received next door. The governor swept down another sob with another guffaw; mamma bestowed upon me another blessing and another kiss; and Laura was so rejoiced, that she gave me another hearty cry, and forgot to give me another lecture. My next four years were spent to more purpose than the last. Being less in a hurry, I took time to build up a flourishing business in partnership with Laura's husband. As for the baronet's daughter—for we must get everybody into the concluding tableau—why there she is—that lady cutting bread and butter for the children, with as matronly an air as Werter's Charlotte: she is my wife; and we laugh to this day at the oddity of that First Interview which led to so happy a *dénouement*.

VISIT TO A CHOCOLATE MANUFACTORY.

[Return to Table of Contents](#)

BIRMINGHAM, so says the *Times*, is famous for 'lacquered shams;' and any one who has sojourned for a while in the huge, smoky toy-shop will add—for not a few genuine realities! To walk from factory to factory, from workshop to workshop, and view the extraordinary mechanical contrivances, the ingenious adaptations of means to ends, to say nothing of the eager spirit of application manifested by the busy population, produces an impression on the mind of no common character. Besides which, the town itself, so ill-arranged and ugly, is a spectacle; and in the people that inhabit the dismal streets, the visitor may find studies in morality as well as manufactures.

We have something to say about one of the realities alluded to above—not the making of pens, or tea-pots, or papier-maché; but of something in which breakfasts are implicated all over the kingdom—the making of cocoa and chocolate as carried on by Messrs Cadbury, Brothers. These gentlemen having kindly invited us to a sight of their establishment, we took the opportunity of witnessing their processes for converting raw produce into an acceptable article of diet, aided by the ample explanations of one of the partners. Such a manufacture seems out of place among bronze and brass and hardware, but the factory stands away from the fuliginous quarter, on the verge of Edgbaston—that Belgravia of Birmingham—where sunshine and blue sky are not perpetually hidden by smoke. What we saw there is worth the telling, as we hope to shew.

Here, however, we must say a few words concerning the raw material. It appears that the Spaniards were the first Europeans who tasted chocolate; it was part of their spoil in the conquest of Mexico. Bernardo de Castile, who accompanied Cortez, describing one of Montezuma's banquets, says: 'They brought in among the dishes above fifty great jars made of *good cacao*, with its froth, and drank it, the women serving them with a great deal of respect;' and similar jars were served to the guards and attendants 'to the

number of two thousand at least.' The Spaniards enjoyed the rare beverage, and with a slight transformation of the native Mexican term *Chacoc-atl*, they introduced chocolate, as they named it, into Spain, monopolising the article for a time, and it was only by slow degrees that the knowledge of it spread into other parts of Europe. Gage, an old traveller who had visited the tropics, writing in 1630, remarks: 'Our English and Hollanders make little use of it, when they take a prize at sea, as not knowing the secret virtue and quality of it for the good of the stomach.' In the reign of Charles II., it was so much esteemed in England that Dr Stubbe published a book, entitled *The Indian Nectar, or a Discourse concerning Chokolata, &c.*, giving a history of the article, and many curious notions respecting its 'secret virtue;' and recommending his readers to buy it of one Mortimer, 'an honest, though poor man,' who lived in East Smithfield, and sold the best kind at 6s. 6d. the pound, and commoner sorts for about half that price. Of course, none but the wealthy could drink it; indeed, we find writers of the past century alluding to it as an aristocratic beverage.

Linnæus was so fond of chocolate, that he called it *food for the gods* in the distinguishing name which he gave to the tree that produces it—*Theobroma cacao*. The tree is a native of tropical America, but is now largely cultivated in other parts of the world. It grows from twelve to sixteen feet high, with evergreen leaves, and fruit of a deep orange colour when ripe, resembling a cucumber in shape, and containing from ten to thirty seeds. These seeds are the cacao-nuts or cocoa-nibs of commerce; in the trade, they are commonly spoken of as cocoa-nuts. The best kind are brought from Trinidad; and such has been the effect of lowering the duty, which was formerly 4s. per pound, to one penny, the present charge, that the quantity imported in the year ending January 5, 1852, amounted to 6,773,960 pounds. Among the colonial produce shewn in the Great Exhibition, cocoa-nuts held a conspicuous place; and it ought to be understood, that from such as these cocoa and chocolate are made—both from the same article.

To return to the factory. We first saw a storehouse filled with bags of nuts or nibs, two hundredweight in each, the only kinds used on the premises being those from Trinidad and Grenada. In an adjoining room, imbedded in a huge mass of brickwork, are four cylindrical ovens rotating slowly over a coke-fire, each containing a hundredweight of nuts, which were undergoing

a comfortable process of roasting, as evidenced by an agreeable odour thrown off, and a loss of 10 per cent. in weight at the close of the operation, which lasts half an hour. Thus, in a day of ten hours, the four ovens will roast two tons of nuts, the prime mover being a twenty-horse steam-engine. The sight was one that would have gladdened Count Rumford's heart, for the cylinders and their fittings comprised all the economical principles of his roaster—certainty of effect without waste of fuel.

The next step is to crack or break the nuts in what is called the 'kibbling-mill.' The roasting has made them quite crisp, and with a few turns of the whizzing apparatus, they are divested of their husk, which is driven into a bin by a ceaseless blast from a furious fan; while the kernels, broken into small pieces, fall, perfectly clean, into a separate compartment, where their granulated form and rich glossy colour give them a very tempting appearance. The husk is repacked in the empty bags, and exported to Ireland, where it is sold at a low price to the humbler classes, who extract from it a beverage which has all the flavour of cocoa, if not all its virtues.

Thus prepared, the mass of broken nut is ready for more intimate treatment, which is carried on in a large room where shafts, wheels, and straps keep a number of strange-looking machines in busy movement. Some of these are double-cylinders, highly heated by a flow of steam between the inner and outer cases—an arrangement by which any degree of temperature can be produced in the interior. Inside of each works an armed iron-breaker, which, as soon as a quantity of the cracked nuts is introduced, begins to rotate, and, by the combined influence of heat and pressure, liberates the oil of the cocoa bean, and soon reduces the mass to a liquid which flows, 'thick and slab,' into a pan placed to receive it, leisurely as a stream of half-frozen treacle. In this state it is ready for grinding between the millstones, to which it is successively transferred, being poured into 'hoppers,' which, like the cylinders, are heated by steam. The cocoa flows rapidly from the stones in a fluid smooth as oil; but it is the best kinds only that are favoured with the most trituration, the commoner sorts being more summarily dismissed. At the time of our visit, a pair of new stones were in course of erection, which of themselves will turn off a ton of chocolate per day.

The process, so far, is that employed for all kinds of cocoa and chocolate, the nuts, as before stated, being the basis of all: the variety depends on subsequent admixture, the best kinds being, of course, the purest and most delicately flavoured. Up to this point, we have the cocoa in its native condition, merely altered in form; but now it has come to the stage of sophistication.

A given portion of the cocoa liquid is poured into a pan, and weighed with other ingredients, which consist, in the main, of arrow-root, sago, and refined sugar—the latter reduced to an impalpable powder—besides the flavouring substances. The quality depends entirely on the proportions of these ingredients, and on their unexceptionable character. The unpractised eye may not detect any difference between a cake of genuine chocolate, and another two-thirds composed of red earth and roasted beans. We have seen documentary evidence laid before the Board of Excise, shewing that a certain manufacturer of cocoa used every week a ton of a species of umber for purposes of adulteration; and recent investigations have shewn, that such practices are only too frequent. No wonder that muddy and insoluble grounds are found at the bottom of breakfast-cups! No one pretends that manufactured chocolate or cocoa is unmixed; but it is a satisfaction to know, that the admixture is not only of good quality, but nutritious.

The necessary quantities having been weighed and duly stirred together with a large wooden spoon, are poured into a mould nearly three feet in length, about nine inches wide, and from three to four inches deep; and in from four to five hours the mass is sufficiently solid to bear removal, when it is turned out as a large cake or block, which might very well pass for a huge sun-baked brick from Nineveh. In this way any number of cakes may be produced, those made on one day being finally worked up on the next, by which time they have become somewhat more hardened.

In this final process, the cakes are laid one at a time in what resembles a chaff-cutting machine, except, instead of the ordinary broad knife wielded by grooms, that a wheel, armed with four sharp blades, whirls round at the open end. The block of cocoa, held by machinery, advances with a slow continuous motion, until it touches the blades on the wheel, when immediately a cloud of most delicate slices or shavings is thrown off, as

rapidly as sparks from a knife-grinder's wheel. Cake after cake is thus comminuted, at the rate of a ton per day from a single machine. The shavings are collected as fast as they fall, and passed through a sieve, which reduces them to that coarse powdery form so well known to all consumers of soluble chocolate. It is then put into barrels, and despatched without delay to the packing-room by means of a railway.

That there is something in a name, is as true of cocoa and chocolate as of other things, and the difference of name implies, in most instances, a difference of manufacture. Hence there is a variety of processes going on within the building, the results of which are shewn in 'Cocoa Paste,' 'Rock Cocoa,' 'Eating Vanilla Chocolate,' 'Penny Chocolate,' 'French Bonbons,' 'Flaked Cocoa,' 'Homœopathic,' &c. So numerous are the sorts, that a purchaser is as much puzzled in his choice as an untravelled Cockney with a Parisian bill of fare. The making of the flaked cocoa is peculiarly interesting, and is, we were informed, peculiar to this establishment. To see how the amorphous mass comes from the mill in long curling ribbons, uniform in thickness and texture, is a sight that provokes astonishment, as much by the rapidity of the operation as by the ease with which it appears to be accomplished, but which has only been arrived at by a persevering circumvention of vexatious difficulties.

But however interesting the results, one grows tired at length of the noise and clatter of machinery; and it was with a feeling of relief that we mounted to the packing-room, where all was so light, cheerful, and orderly, as to prove that the good management everywhere perceptible had here put on its pleasantest expression. The most perfect cleanliness prevails. The half-score or more of girls, who work under the superintendence of a forewoman, are all dressed in clean Holland pinafores—an industrial uniform. All were packing as busily as hands could work: one weighed the cocoa; a second placed the paper in the mould, and turned the cocoa into it; a third compressed the contents by means of a machine-moved plunger; while a fourth released the packet, pasted down the loose ends, and laid it aside. This party, by their combined operations, weigh and pack a hundredweight per hour. Some were wrapping the 'homœopathic' in bright envelopes of tinfoil; others boxing the 'bonbons;' others coating the 'roll' with its distinctive paper; while others helped the forewoman to count and sort the

orders—all performing their duties with that celerity which can only be attained by long practice. Finally, the respective orders are packed away in boxes of various sizes, from fourteen pounds to a hundredweight; and to give full effect to the system of cleanliness, none but new boxes are used, so that not the slightest ground is afforded for even a suspicion of uncleanness.

In these professedly enlightened days, commercial progress cannot well be considered apart from moral progress; we want to know not only how work is done, but who and what they are who do it. Are they benefited by the 'mighty developments of commercial enterprise?' We may therefore very properly say a few words respecting the *employés* in the cocoa-factory. No girl is employed who is not of known good moral character. Some at first are found to be good rather passively than actively, but they have example daily before their eyes, and a spirit of emulation gradually develops their better qualities. Their hours of work are from nine A.M. to seven P.M., with an hour off for dinner—tea is supplied to them on the premises. Their earnings range from 5s. to 9s. per week. Once a week, during the summer season, they have a half-holiday for a little excursion to the country, and twice a week they leave work for evening school an hour before the usual time. With few exceptions, these elevating influences are found to tell favourably on their conduct; and besides the direct benefit to themselves, we may be permitted to take into the account, the benefit to the homes and families to which the girls belong. Accustomed to order and cleanliness through the day, they can hardly fail to carry these virtues with them to their dwellings. The men employed exhibit the good effects of proper management not less than the girls. Some have acquired a steady habit of saving, and with nearly all, from the mere force of example, teetotalism is the rule. Instances of misconduct are rare, and when reproof is called for, it is administered by an appeal to the better feelings in preference to angry demonstration. Factories conducted on such a system must be at once schools of morality and industry.

There is one more point which we feel bound to notice in closing our article. While going about the premises, we were asked to look to the top of the tall engine-chimney, where, to our surprise, none but the faintest whiff of vapour was visible. 'There is no need,' said our conductor, 'that any

chimney in Birmingham should smoke more than that. I have told the people so over and over again, but to little use, for they will persist in wasting fuel, and blackening the atmosphere. This is Beddington's patent, and you shall see the effect of it.' The fireman was then told to shut off the apparatus from the flue; immediately a dense black smoke poured from the chimney-top, and when at the murkiest, the order was given: 'Now turn on again.' In five seconds, the smoke had vanished, and the almost imperceptible vapour alone remained. Thus, of the coal consumed daily, not a particle is wasted, and a considerable portion of the atmosphere is saved from deterioration. So perfect an example of what can be done towards the abatement of a nuisance, made us wish to be autocrat for a week—our reign should be signalised by the extinction of smoke!

THE WORKING-CLASSES IN 'THE GOOD OLD TIMES.'

[Return to Table of Contents](#)

As it has become fashionable in some quarters to hold that the working-classes are ever sinking in position, and that they have lost the comforts, the pleasures, and the freedom of the 'good old times,' it may serve a useful purpose to put together, from authentic sources, some notices of their actual condition among our ancestors. To associate our present working-classes with slavery would seem an insult; and it would be said, that it is a condition to which they could not, under any circumstances, be induced to submit. But although this is true of their present condition, it is equally true, that not only in the rest of Europe, but even in England and Scotland, those who of old held the position of the working-classes, were slaves in the strictest sense of the term. Among our Saxon ancestors, to whose free institutions our historians so often proudly refer, two-thirds of the people—that is, in short, the whole of the working-classes—are computed to have been slaves. Sir Walter Scott, whose descriptions of life and manners are as faithful as they are picturesque, gives an admirable sketch of the slave or thrall of the Saxons in the faithful Gurth, the follower of Ivanhoe. First, we have the account of his close-fitting tunic, made of skin; after which follows that of a part of his dress which, Sir Walter said, was too remarkable to be overlooked. 'It was a brass ring resembling a dog's collar, but without any opening, and soldered fast round his neck, so loose as to form no impediment to his breathing, yet so tight as to be incapable of being removed except by the use of the file. On this singular gorget was engraved in Saxon characters—"Gurth, the son of Beowald, the born thrall of Cedric the Saxon."'

For two or three centuries after the Conquest, there is no doubt that the peasantry were liable to be bought and sold as slaves. Even in Magna Charta, there is a prohibition that a guardian shall not 'waste the men or cattle' in the estate of the ward: there is here no consideration for the men

who might be 'wasted;' it is all for the property of the ward, which is not to be injured through the cupidity or carelessness of his guardian. Sir Frederic Eden, the historian of the poor-law, adduces many instances in which slaves had been sold—thus in 1283, a slave and his family were sold by the Abbey of Dunstable for 13s. 4d.

The distinguishing feature of Britain at the present day is, that she is in advance of all the other nations of Europe in uniting order with freedom. Our ancestors may be said to have led us on to this proud position, by the gradual emancipation of the peasantry from slavery. We soon find, in the contests with European powers, the great distinction between the Briton even of the humblest rank and the Frenchman or German. The great victories gained by the English over the French—Crecy, Poitiers, and Agincourt—have been supposed almost fabulous, from the inequality of the contending forces—the small number on the victorious side, the vast host conquered by it. But we cease to wonder when we examine the different qualities of the combatants. At Agincourt, the English army, which was completely victorious, amounted to only 9000 men; while that of France, which was routed, amounted to 50,000: at Poitiers, the disproportion was nearly as great: and at Crecy, the conquered force more than doubled that of the conquerors. We have not lately seen, nor are we likely to see, contests with such results in European warfare. But we see it in Oriental conflicts; and the late battles of our troops with the Afghans and Sikhs were somewhat of the same character, from the immense superiority of European over Asiatic discipline. The reason of the superiority of the English over the French in the fourteenth and fifteenth centuries, is plain enough to any one who has studied the history of the people, though it may be incomprehensible to those who have only studied the history of courts and armies. It arose from the growing freedom of the British. Before the introduction of firearms, the great dependence of an army was generally in the men-at-arms, as they were called, or the knights and others who were sheathed in plate armour, mounted on strong horses, and provided with costly weapons. The knight and his horse were like a movable fortification; the peasantry or serfs who went along with them to battle, half-naked and half-fed, with rude and trifling arms, were looked upon as mere dross in comparison with the men-at-arms. One man-at-arms was considered equal to ten or even twenty of them; and when knights were not engaged in

encountering each other, it was deemed as a sort of amusement for a few of them, with their heavy horses and armour, to ride down multitudes of these abject serfs.

So it was in the rest of Europe, but not in England. The English bowman, or billman, who carried a large axe or bill, was a strong, healthy, well-fed man; and though he had not perfect freedom, according to our modern acceptation of the term, he had an existence worth struggling for, and not entirely at the command of an imperious lord. Hence he was sometimes not much inferior, as a combatant, to the mail-clad man-at-arms. Now, at the battle of Crecy, the French, though the wretched serfs were so numerous, had only about 8000 men-at-arms; and though the English had not a third of that number of the higher kind of warriors, yet they had nearly 30,000 sturdy bowmen and billmen. A characteristic illustration of the contempt with which the poor slaves were viewed occurred in that very battle. A party of cross-bowmen hesitated to advance—they felt tired, the fatigue of the march being beyond their strength. On this, the Count of Alençon cried out: 'Kill the lazy scoundrels!' A number of the men-at-arms rushed in among them, to chastise them, and this produced a confusion which assisted the English to their victory.

From these battles, and a multitude of other sources, we can see the great superiority, in freedom and condition of living, of the humbler class in England over that in France; and yet, at the same time, it is difficult in the nineteenth century to believe in the extent of tyranny exercised, down to a comparatively recent period, over the working-classes in Britain. We may judge of the tyrannical interference of the government with the freedom of labour by the Statute of Labourers, passed in 1349. One of the frightful famines of the middle ages had occurred, and labourers were scarce in comparison with the means of employment. It is said that the same phenomenon has now in some measure recurred in Ireland; but there is little chance of our statesmen treating it as those of the fourteenth century did. Justice says, that the labourer is entitled to obtain the value of his labour, be it much or little. Parliament, however, fixed the amount which it thought the reasonable price of labour—the rate at which the members of the legislature desired to have it; and endeavoured, by penalties and persecution, to obtain it at that rate. The statute commences by abusing the labourers for taking

advantage of the scarcity of hands to demand high wages—as if there ever were human beings, employed in the ordinary affairs of life, who would not take what wages or profits they could obtain; and as if labourers were like missionaries, and other devotees, who are not led by any mercenary motive. The statute then enacts, that every person able in body, and under the age of sixty, not having means of maintaining himself, is bound to serve whoever shall be willing to employ him, at the wages which were usually paid during the six years preceding the plague; and if he refuses, and it is proved by two witnesses before the sheriff, bailiff, lord, or constable of the village where the refusal is given, he is to be committed to jail, and continue there till he finds surety to enter into service in terms of the act.

It is always observable, that laws interfering with freedom of trade go on increasing in strictness, because the confusion which the first attempt creates is always attributed to the deficiency of the law instead of its excess. The Statute of Labourers was of course insufficient to put everything right between employers and employed; and so, two years afterwards, another and stricter Statute of Labourers was passed (23 Ed. III., ch. 1-8.) This statute not only regulated the wages of husbandry, and the times when peasant-labourers were to work, but fixed the precise amount which each kind of artisan was bound to work for. The account given of it by Mr Daines Barrington, in his observations on the statutes, may be quoted as among the clearest and briefest. The reader will of course remember, that the coins mentioned by him bore a much higher value than coins of the same denomination at present. 'The common labourer in the hay-harvest is only to have 1d. a day, except a mower, who, if he mow by the acre, is to have 5d. per acre, or otherwise 5d. a day. A reaper is to have in time of corn-harvest 2d., the first week in August, and 3d. till the end of the month; and they are likewise neither to ask meat nor any other perquisite or indulgence. The law likewise requires that they shall repair to the next town or village, carrying their scythe or sickle openly in their hands, and shall there be hired in some public place.... The second chapter directs that no man in harvest—before settled to be in the month of August—shall leave the village in which he lived during the winter, except the inhabitants of Staffordshire, Derbyshire, Lancashire, Craven, and the marches of Wales and Scotland—the occasion of which is, that there are large tracts of mountain or moorland in all these counties and districts, where nothing can be raised but oats,

which are not usually ripe till October; and, consequently, if they were not employed in more early harvest, they would be without employment during the months of August and September.'

But the English peasantry and artisans had now acquired too much real independence to submit silently to these arbitrary regulations. The celebrated insurrection of Wat Tyler, which took place thirty years afterwards, was a concentrated embodiment of popular discontent. However turbulent and dangerous might be the form in which the mob demanded redress, the demands themselves were in many respects very reasonable. Thus, the brief statement of them by Hume, the historian, is, that they 'required a general pardon, *the abolition of slavery*, freedom of commerce in market-towns without toll or impost, and a fixed rent on lands, instead of the services due by villenage'—that is to say, they desired that they should be tenants, paying rent in money or services, and not serfs bound to remain on the soil. The insurrection was crushed, and the insurgents obtained no immediate redress. Parliament, however, considered the whole circumstances before the conclusion of Richard II.'s reign. Wat Tyler's rebellion was nearly contemporary with several other risings throughout Europe of the enslaved working-classes against their tyrants. In France, they formed the dreaded bands of the Jacquerie, who desolated the most fruitful portions of that fine country. They committed great cruelties; but in the end they were crushed by the chivalry of the upper ranks. In the results of the two insurrections, however, there was a marked difference between England and France. Advance and improvement have ever, fortunately, characterised the legislation of this country. In France, and other parts of the continent, the insurgents were crushed with terrible slaughter, and then they were subjected to stricter and sterner laws, to prevent them from breaking out again—laws so strict and stern, that the French peasantry and working-classes were kept in chain by them till the Revolution of 1788. In England, on the other hand, the parliament which met after Tyler's insurrection was put down, took into consideration the state of the country; and the tyrannical and oppressive laws against the peasantry and working-classes were modified.

Still these classes remained for centuries in a condition so closely bordering on actual slavery, that a close, practical contemplation of it would certainly

be sufficiently startling to the workmen of the present day. The celebrated statute of Elizabeth for the relief of the poor, passed in 1597, shews us, in sufficiently distinct terms, the position of the workman at that period. Various kinds of vagrants or impostors are, in the first place, enumerated, much resembling the same class at the present day—such as persons pretending to be shipwrecked sailors, fortune-tellers, players, bear-keepers, musicians, &c. And then we have 'all wandering persons and common labourers, being persons able in body, using loitering and refusing to work for such reasonable wages as is taxed or commonly given in such parts where such persons do or shall happen to dwell or abide, not having living otherwise to maintain themselves.' Among the punishments attached to this offence are, that the offender 'be stripped naked from the middle upward, and shall be openly whipped until his or her body be bloody.' In fact, the whole poor-law legislation which followed this enactment, down to the act of 1834, treated the peasant in a great measure as a slave. Doubtless the workhouse-test, which requires that the able-bodied man who gets relief shall give labour for it, involves slavery within the bounds of the workhouse. But this, fortunately, now only applies to a few. The evil of the old system was, that while it was less stringent in giving relief, and afforded much more assistance to the able-bodied class of workmen, it necessarily established a control over their motions, and this control made an unpleasantly near approach to slavery. Instead of workmen going with the eagerness of energy and hope to the employer who gave them most wages, they too often went to the employer to whom the parish sent them. The degrading spectacle of labourers set up to auction in the parish pound was frequently exhibited. Apart from the poor-law system, the actual feudal serfdom, which gave landowners great powers over the peasantry on their estates, was not abolished until the reign of Charles II.

We have a similar history of matters in Scotland. Thus, not to go further back, an act passed immediately on the restoration of the Stuarts, empowered justices of peace to fix the rate of wages to be paid to labourers, workmen, or servants; and if they refused to work at the legal wages so established, they might be imprisoned and scourged. It was not an uncommon thing, at the commencement of the last century, to see advertisements in the newspapers for the apprehension of runaway servants. The power of the higher over the working-classes was so great, that at one

time, before the idea of a traffic in negroes was suggested, young people were kidnapped even in the streets of cities, and sent out as slaves to the plantations. Instances have been given where their parents have seen them driven in herds on board ship, yet dared not interfere. The power which the landholders in Scotland possessed over their vassals, down to the middle of the eighteenth century, was a condition of things necessary to the two rebellions. The humble clansmen were not properly rebels; they were paying obedience to their chiefs, who possessed power over them almost unlimited. The notorious Lovat had managed to seduce an English servant to the Highlands, and when once there, the poor fellow found that he was a slave, and could not possibly escape. It was not until the present century that two classes of workmen in Scotland were emancipated from a species of slavery—colliers and saltmakers. It is startling to read of them in the work which is still the principal law authority in Scotland—*Erskine's Institute*. He speaks of them as 'necessary servants,' and says: 'In this class of necessary servants may be reckoned colliers, coal-bearers, salters, and other workmen necessary for carrying on of collieries and salt-works. These are by law itself, without any paction, bound, merely by their entering upon work, in a colliery or salt-manufactory, to the perpetual service thereof; and if the owner sell or alienate the ground on which the works stand, the right of the service of these colliers, salters, &c., passes over to the purchaser.' What was this but modified slavery?—and the consideration that it actually existed within Great Britain until a recent period, and excited no sort of compassion, should temper any observations we might be inclined to make on the subject of slavery in distant countries.

We cannot but rejoice that in the present day there exists not the slightest relict of serfdom in any part of the United Kingdom. Every man is now his own master, and has his own responsibilities. We say, we are glad of this, because without such liberty of personal action, there can be no social progress. At the same time, it appears undeniable that the legislature, in emancipating the humbler classes, has strangely neglected to go one step further—that is, to make sure of their being educated, and so rendered capable of improving their condition to some purpose. It is in this great shortcoming that a blot rests on our institutions. When is that blot to be removed?

EXTRACTS FROM THE DIARY OF A TRAVELLER IN CHILI.

[Return to Table of Contents](#)

So little is known of Chili, a country of considerable extent in South America, with a frontage to the Pacific, that latterly a distinguished man of science, Dr Ried of Ratisbon, went on an expedition to explore its physical character. From the notes which were sent by this enlightened traveller to the secretary of the Zoological-mineralogical Society of the above-named city, we are enabled to draw the following account of the wild interior of the Chilian territory:—

The land along the coast is unusually high, the mountains on the sea-board rising about 3000 feet above the water, for the greater part at an angle of 60 to 70 degrees. In their height, there is hardly any perceptible difference; the summits form long tracts of table-land, very uneven, however, and broken up in all directions by chasms, and the dried-up beds of cataracts and rapid rivers. For 400 leagues along the coast, all is one dreary waste. The entrance to this table-land is by the dry bed of a mountain torrent. Such channels, in which not a drop of moisture has been found within the memory of tradition, are everywhere to be seen actually ground away, and polished like the finest marble by the action of water. At the foot of the mountains, traces of the sea are discernible 100 or 150 feet higher up than at present. Huge masses of rock, too, bear traces of having been violently rent, where now there is never a storm.

The best entrance to the desert is from Cobija, where the ascent at once begins, and continues for a distance of about three leagues, including the dried-up bed of a torrent, formed in the steep surface of rock. About fifteen leagues from the coast, and parallel with it, a chain of higher mountains rises to a height of between 7000 and 8000 feet. From the summit of these—and it is no easy task to climb so far—one is enabled to form a slight idea of the desert of Atacama. To the east, you see the majestic Cordilleras, their

bright peaks glittering in the distance through a golden mist; while on the north, south, and west, there is an unrelieved expanse without sign of life or hope, but everywhere silence: and what a silence! It is not the stillness of a summer night in the country, nor of a church, nor of a sickroom: it is the silence of death! As you gaze on the scene before you, you are oppressed—almost overwhelmed by its dreary sadness. No insect hum is heard; not even a bird is seen in the still air; the earth, and the atmosphere above it, is one vast region of death. The only link which connects the traveller with humanity, is a long row of the skeletons of mules and horses, which have here left their bones for a guide across the desert. The dead animals lie like mummies, dried and shrivelled; hair, eyes, muscles, all are there. Their appearance presents a remarkable peculiarity. One might suppose, that having been overtaken by death under similar circumstances, the last struggle over, their inanimate bodies would be marked by no characteristic and distinctive difference. But the case is otherwise. Both mule and horse have sunk from hunger, thirst, and exhaustion; yet the position of the two animals in their lifeless state is invariably unlike. The horse lies outstretched, the hoof in a straight line with the knee, the teeth half-closed—a picture of exhaustion and resignation. The mule, on the contrary, has always the limbs drawn up, as if from cramp; the knees are bent, and the hoofs drawn inward towards the body; the head is thrown back, the mouth awry, and the teeth firmly clenched. As they often lie side by side, this difference is striking. Whence it arises, it is difficult to say; but it would seem to denote, that the sufferings of the mule are more intense, and its tenacity of life greater, than those of the horse.

After traversing a distance of twenty-seven leagues, we arrive at the river. Travellers who are inured to fatigue, always make the journey in one ride. Dr Ried accomplished the whole distance without once dismounting. The stream is called Loa, and has its source in the snows of the mountain-tops. In the neighbourhood of a small Indian village called Chiuchiu, it is fed by a little volcanic stream, which contains a large quantity of salt in a state of dissolution, besides copper, arsenic, sulphur, and other matters. The quantity of the water is increased by this supply, but its quality by no means improved; yet the abominable mixture tastes on that spot like the choicest champagne! The stream is not perceived till you stand on the very edge. Its bed is between 300 and 400 yards broad, and is about 200 or 300 feet below

the average surface of the table-land. The body of water which forms this river is very inconsiderable, and becomes more and more so as it nears the sea. Here Dr Reid saw some mosquitoes, as well as a small lizard; but the presence of the quick, bright-eyed creature in that dreary waste, rather added to the sense of loneliness. Its very name, too (*Musca domestica*), seemed a mockery, dwelling as it did in that vast solitude. In the water, no trace of life was to be found. 'From the stream, which has its source in the clouds,' writes Dr Ried to his friend, 'I took a bottleful, which I send you to analyse, and in order that you may say you have seen water from Atacama. I advise you, however, not to drink it.'

In the desert, it *never* rains. At the foot of the Cordilleras—and only at the foot—rain falls to a distance of about ten leagues westward, but *never* further; in Atacama, to a distance of about ten leagues from the mountains; in Chili, to far beyond the coast. Perhaps, however, the most extraordinary phenomenon of this strange land, is the sudden change of temperature which takes place over the whole desert. The heat at noon is oppressive—from 96 to 120 degrees Fahrenheit; and this continues till four P.M., when it begins to diminish. From ten A.M. till about sunset, there is a strong westerly wind, blowing from the sea towards the Cordilleras. It is always fierce, but sometimes so powerful, that it is impossible to advance against it. When the sun is down, the wind likewise subsides, and till nine or ten o'clock in the evening there is a perfect calm.

Sunset in these regions is a magnificent spectacle. The play of colours in the heavens is quite indescribable. When the moon rises, the same thing occurs. Opposite the orb, a huge pile of vapour rises in shadowy forms, on which the light is thrown, producing the most wonderful effects. In these chromatic displays, red is the colour that predominates. Towards midnight, the wind begins to blow from the east, at first gently, but icy cold, for it comes from the regions of perpetual frost and snow. The radiation of heat from such an extensive and almost glowing surface is naturally very great and rapid, and after midnight it begins to freeze. An hour before sunrise, all stagnant water is frozen over; and the thermometer falls sometimes to 28 degrees Fahrenheit—on an average it is at 32 degrees—to rise again at noon to 90 degrees.

THINGS TALKED OF IN LONDON.

[Return to Table of Contents](#)

October 1852.

THE death of the great Duke has for a time kept other subjects of conversation in abeyance; but by slow degrees the old hero slides into the past, and the tongues and pens of thousands are busily recalling the words, works, and exploits by which he won for himself 'imperishable renown.' His life presents itself to us in different aspects, wherein the lowliest as well as the loftiest may find something exemplary; and all may learn a lesson in that virtue of virtues—persevering straightforwardness. By and by, we shall have a magnificent funeral; and then, as new events follow, we shall find whether new men are to come capable of meeting them; whether there are to be heroes after Agamemnon as well as before.

The remains of the Great Exhibition building are fast disappearing from Hyde Park, under the busy hands of the troops of workmen engaged in the business of taking down and removal. Heavily-laden wagons are continually departing from each entrance, and every hour the prodigious mass of materials is diminished. The spectacle is a striking one in many respects, and would be a melancholy one were it not for the certainty of restoration. Already the grass is beginning to grow on the ground, worn bare by millions of feet; and before many months are over, the greensward will again cover the site of the world's Temple of Industry.

Among the objects of most interest to be comprised in the new Palace, are galleries of Classic and Mediæval Art, a Nineveh and Egyptian Court, Etruscan Restorations, Hall of the Alhambra, Court of Inventions, besides complete illustrations of the races of Man, to be arranged by Dr Latham, which will afford valuable aid to the student of ethnology; and of natural history and geology, all to be superintended by able professors. Seeing that there is talk of enlarging the British Museum, which is not half large

enough for its purpose, might not some of its long-hidden contents be transferred, under proper regulations, to the Palace at Sydenham?

The present year has been as remarkable for storms as the last was for fine weather, and in parts of the world widely separated—the continent of Europe and the United States of America, as well as our own country. Meteorologists say, that the frequent atmospheric disturbances will furnish us with valuable facts for theoretical and practical use. In many places, the storms have been followed by destructive floods, particularly in France, the effects of which, it is said, are greatly aggravated by the spirit of modern improvement, leading to the cutting down of trees and forests; so that the more the land is cleared, the fiercer become the floods. It would be interesting to test this fact by what takes place under similar circumstances in America, where forest is in excess. The subject has been brought before the Geological Society by Mr Prestwich, as regards the Holmfirth flood, with a view to collect data as to the power of moving water, the height of the flood, the time in which the water ran off, together with exact measurements of the fall of the ground, and the amount of denudation. All these are questions of great scientific value in geology, because arguing from the effects produced by so small a body of water comparatively, we may arrive at satisfactory conclusions concerning the great floods of other ages. In the instance here referred to, from 40,000 to 50,000 tons were carried from the dam by the sudden rush, the greater part of which was deposited within the first 300 feet. Lower down, from one to two feet of deposit was laid over the meadows; rocks, weighing from five to twenty tons, were transported to a considerable distance; and at seven miles from the outbreak, near Huddersfield, a stratum of sand was laid over the fields. The mention of these facts may be of service to those who have had opportunities for observation elsewhere.

The Society have also had their attention called to disturbances of another sort—earthquakes; of which not a few have occurred of late in many parts of the world, our own island among them. The shocks appear to have been most severely felt in the south-west—Cornwall, for instance, and the neighbourhood of Bristol, where they extended over an area of more than thirty miles. The effects have now been accurately described: one of the shocks lasted two seconds; the other, from ten to twelve seconds,

accompanied by a rumbling noise. The line of disturbance was from north to south, striking the Mendips, and traversing parts of the shires of Somerset and Gloucester. 'The chief focus of oscillation was at Cheddar, where the hill is said to have waved to and fro during several seconds; and in the alluvial flat or marsh below Cheddar, some houses had the plaster of the ceilings cracked; while in others, the clocks struck, doors slammed, bells rung, &c.' With such commotions taking place in the solid earth, geologists will not fail of sources of interest in their favourite study. There is yet another geological fact worth mentioning—the finding of footprints in what is called Potsdam sandstone, near Montreal, in Canada. This sandstone is the 'lowest member of the lowest Silurian rocks;' and the discovery is good evidence that there were living creatures walking on the land at the very oldest periods hitherto revealed by geology—thus carrying back the appearance of organic life to a time more remote than had been supposed. Professor Owen, who has examined the slabs and casts, says, that no idea of the creature that made the tracks can be formed from any animal at present existing, for instead of the prints being in successive pairs, an odd one is found to intervene. He considers it to have had three legs on each side, and to have been neither tortoise-like nor vertebrate; and after naming it *Protichnites*, adds: 'I incline to adopt, as the most probable hypothesis, that the creatures which have left their tracks and impressions on the most ancient of known sea-shores, belonged to an articulate and probably crustaceous genus.' The fact is an important one in a scientific point of view, and presents a new standpoint for inquirers.

There is advancement, too, in other quarters. Faraday has been diligently pursuing his investigations into the phenomena of electricity and magnetism through greater part of the dead season, and will be prepared ere long to make the results public. And Professor Stokes's researches and experiments on light, which have been laid before the British Association and the Royal Society, are regarded by competent judges as the most remarkable and fruitful that have been made for many years. Another means of advance will perhaps be found in the new process for 'illuminating' glass, by which lenses of all sizes, from spectacles to telescopes, may be made so much brighter and more transparent, as to increase their power and utility to an extraordinary degree. We are shortly to have further particulars concerning this improvement, which, if it be such as described, and applicable to

microscopes, will perhaps enable Ehrenberg to verify the opinions he has lately formed concerning the atmosphere—namely, that it is not less full of organic and inorganic life than the ocean, or any other part of creation.

Mr Westwood has read a paper before the Zoological Society, 'On the Destructive Species of certain Insects known in Africa,' in which he shows the probability of their having been the insects of the fourth plague recorded in the Pentateuch. Some of them are the *Oestridæ*; and one kind known in Africa as *Tsetse*, is so fierce and venomous, that a few of them are sufficient to sting a horse to death: they are the same as the *Zimb*, of which Bruce gives such a striking account. Their presence appears to be mainly determined by the nature of the soil, for they are seldom found away from the black earth peculiar to the Valley of the Nile. Among the carvings on the ancient tombs, this insect is supposed to be represented. With regard to another species of insect, Dr Macgowan states, that the insect-wax of China, of which 400,000 pounds are produced annually, is not, as has long been believed, a 'saliva or excrement,' but 'that the insect undergoes what may be styled a ceraceous degeneration, its whole body being permeated by the peculiar produce in the same manner as the *Coccus cacti* is by carmine.'

The Agricultural Society have announced that they will give 'L.1000 and a gold medal for the discovery of a manure equal in fertilising properties to the Peruvian guano, and of which an unlimited supply can be furnished to the English farmer at a rate not exceeding L.5 per ton.' Also, 'fifty sovereigns for the best account of the geographical distribution of guano, with suggestions for the discovery of any new source of supply, accompanied by specimens.' To be adjudged in 1854. They offer, likewise, fifty sovereigns for the best essays on farming in the counties of Hereford, Surrey, and Derby; and thirty sovereigns for the best essays on the 'management of heavy lands;' 'of light lands;' on 'beans and peas;' 'on hereditary diseases and defects in pigs and sheep.' These to be decided in 1853. It is something to see agriculture thus trying to stand on its own legs.

Among minor matters, the wire-lace recently invented at Nottingham has been talked about, and is said to be as tasteful and rich as it is novel, for it admits of being electroplated. Shall we wear metal clothing by and by, as well as live in metal houses? Dr Payerne has been making experiments in

submarine steam navigation at Cherbourg, and with such success as to be able to sink his vessel at any moment, to live in it under water, and to propel it in any given direction. Are we to be invaded by a fleet of these artful contrivances, or is it a preparation for the escape of the future emperor from St Helena? There are one or two interesting facts from Australia, although not about gold: the bodies of Dr Leichardt and some of his exploring party, are said to have been discovered near Moreton Bay, where they had been murdered by the natives; and Sir Thomas Mitchell, the well-known surveyor-general, has invented a steam-propeller on the principle of the *boomerang*, which, when applied to a boat, answered expectation. Further experiments are to be made; meanwhile, the inventor says, 'that the weapon of the earliest inhabitants of Australia has now led to the determination mathematically of the true form by which alone, on the screw principle, high speed on water can be obtained.' The *Ericsson* caloric ship is launched; but if a new projector is to be believed, the maker may save himself all further trouble, for Mr Burn proposes to build square ships, with the bottoms constructed as double inclined planes, which shall cross from England to America in forty-eight hours! When this scheme is realised, travelling and flying will become synonymous terms. We are to have another electric telegraph across the Channel: it is underground as well as submarine, the wires being laid in wooden tubes under the old turnpike-road from London to Dover, independent of the railway, thus reopening a shorter as well as a competing route. The possibility of an electric telegraph from England to America is again talked about, and will doubtless be talked about until it is accomplished, in the same way that the French, by dint of trying, seem determined to succeed at last in aërial navigation, the latest exploit of that kind having been the turning round of a cylindrical balloon in the air at Paris by means of a small steam-engine, carried up by the apparatus. Meanwhile, Denmark is going to link her states together by wires, which will stretch from Copenhagen to Elsinore and Hamburg, and include Schleswig, Zealand, and Holstein. Loke would stand no chance now in the old Scandinavian land against the thought-flasher. The Swedish exploring expedition is making satisfactory progress in the southern hemisphere, and Captain von Krusenstern is fitting out a vessel at his own cost to explore the coast of Siberia—an enterprise which the Russians have often attempted with but partial success. The Americans, too, are thinking of another expedition, to make such observations and discoveries as may be

useful or possible round Java, in the China Sea, as it is called, the Kurile Islands, and Behring Strait. Their state of California is still resorted to by the Chinese, who now number 50,000 in their new country, and conduct themselves as orderly and industrious citizens. There is some talk of introducing tea-culture, for the sake of giving them employment, as their presence at the diggings is scarcely tolerated. We are soon to know more than at present of the geography and people of Borneo, for Madame Ida Pfeiffer has travelled further into that country than any other European, and is preparing a narrative of her adventures. Nearer home, Lieutenant Van de Velde, of the Dutch navy, has been exploring the Holy Land, in a very complete manner, and in some parts heretofore unvisited; and when our Geographical Society meets, we shall doubtless be informed of the chief results of his twelvemonth's toilsome and at times dangerous travel. If Captain Allen's scheme, as laid before the British Association, could be carried out, we should be able to approach the region by another sea as well as the Mediterranean; for he proposes to cut a channel from the head of the Gulf of Akabah to the Valley of the Dead Sea, and allow the water to pour through until the vast basin be filled to the depth of some hundreds of feet, and of course the hollows of the surrounding country, whereby, as the projector states, we should get a new navigable route towards India. He omits to say whether the Arabs would want compensation for loss of territory.

The French consul at Mosul has been making further researches in the Ninevite ruins, and has discovered, among other curiosities, the wine-cellar of the Assyrian kings, with large jars, in which the royal beverage was once contained, ranged along the sides. They are now filled with dust and rubbish, but on emptying them, a dried purple deposit was found at the bottom of each, thus testifying to their former use. If this deposit is in sufficient quantity to be submitted to chemical analysis, we might learn something respecting the nature of really old wine. Apropos of this matter, Dr Buist says, that while we are digging up antiquities in Mesopotamia, we are neglecting those, not less valuable, which we have at home, particularly the Runic stones found in Scotland. Two hundred of these are known to exist between Edinburgh and Caithness, but some have been used as gate-posts to a church-yard, or, as near Glammis, rubbing-posts for cattle. Sueno's pillar, in Morayshire, is the finest. The remarkable fact concerning

these stones, is the similarity, in numerous instances complete, of the sculptures graven on them to those at Nineveh, as though the hyperborean and the Oriental had a common origin. 'Surely,' adds Dr Buist, 'coincidences such as these can neither be fanciful nor accidental; they carry us far back beyond the ages of those we call the aborigines of Britain, as the pyramids and sculptured stones of Yucatan precede the days of the Red Men whom Cortes found peopling America.'

The Dutch Society of Sciences at Haarlem have published their prize-list, in which they offer 2000 florins for the most important discovery in natural science which shall be made between the present year and 1856; and they propose sixty-one questions, the successful replies to obtain a gold medal worth 150 florins, and money to the same amount. Among them are:—The best geological description of the principal hot springs of Europe, their position, course, and quality, so as to show if they have any relation in common, and what relation exists between their changes and the changes caused by earthquakes, volcanoes, &c.—Whether, in any part of the old continents, there are dunes or sandbanks formed, at early geological periods, in the same way as those now existing on the coast of Holland—Whether the sea-level is higher or lower now than formerly with regard to the land-level of the Low Countries—On the wearing of coasts in past and present times, and the means of prevention—Whether a profitable manufacture of iodine may not be attempted on the shores of the Netherlands from certain marine plants and animals—Whether the *cinchona* can be profitably cultivated in the Dutch colonies—On the influence of the nerves in the origin and progress of inflammation—Whether electricity, either static or dynamic, has anything to do with the production of Daguerreotype figures: and one that will interest ethnologists—The Laplanders are said to be the remains of a people who were once numerous over great part of the north, as the Basques are and were in the south; required, a description of the two, with peculiarities and craniological examinations and explanations in full detail. These are important questions, and well worth attention; the treatises may be written in Dutch, French, Latin, German, Italian, or English, so that aspirants to scientific honours in most parts of Europe have now the opportunity to prove their merits.

The forthcoming publishing season promises to be a brisk one: we are to have good books of history, travel, and science, besides something from Carlyle and the Laureate; and in the matter of light literature there will be no lack; Thackeray is again in the field, with three volumes of the old-fashioned sort, so acceptable to novel readers; and Sir Thomas Talfourd has found time for literary as well as legal work. A learned Hindoo, after thirty-five years of labour, has just completed a Sanscrit Encyclopædia—a desirable work for scholars; and the United States' government have published a second volume of the great work on the Indian tribes—a handsome book to look at, but less valuable than it might have been had proper care been bestowed on its contents. The Smithsonian Institution have brought out the third and fourth volumes of their *Contributions to Knowledge*—one of the two being a 'Grammar and Dictionary of the Dakota Language,' the work of missionaries who, eighteen years ago, settled in the Minnesota Valley, to teach and reclaim the Sioux or Dakotas, who number about 25,000. Among the reasons assigned for the publication of the handsome quarto, they state: 'Our object was to preach the Gospel to the Dakotas in their own language, and to teach them to read and write the same, until their circumstances should be so changed as to enable them to learn the English.' As the Smithsonian Institution distribute their publications to most of the scientific societies of Europe, our learned men will have ample means to avail themselves of their contents, and thus help to promote their object—the diffusion of knowledge among men.'

THE POET'S POWER.

[Return to Table of Contents](#)

AY, scorn the Poet's Power,
Darken with doubt his glory,
Burst thou the spirit-spell he weaveth o'er thee,
Till earthward bowed thine heart in youth's warm hour
Grow hard as sinner hoary,
Scorning the Poet's Power!

Yet know the Poet's song
Recks not thy spirit's spurning,
But soars to Heaven's high throne, and thence returning,
Gladdens the heart to which its strains belong,
A rich reward still earning—
The Poet's sainted song.

Wo when the Poet's word
No more man's soul awaketh,
Nor on his clouded eye faith's vision breaketh!
Wo when the world's cold heart no more is stirred,
Though trumpet-tongued it speaketh—
The Poet's prophet-word!

Welcome the Poet's Power,
Nor deem he idly dreameth:
The light that on his heaven-borne spirit streameth,
Is but a ray of truth from Eden's bower.
When Love this earth redeemeth,

FRITZ.

IMPORTANCE OF THE CULTIVATION OF THE SENSES.

[Return to Table of Contents](#)

How our hearts bound to the spirited strains of martial music! how we thrill to the shout of the multitude! and how many a David has charmed away evil spirits by the melody of beautiful sounds! Neither is it a passing emotion of little moment in our lives we receive from the senses, for they are our perpetual body-guards, surrounding us unceasingly; and these constantly repeated impressions become powerful agents in life; they refine or beautify our souls, they ennoble or degrade them, according to the beautiful or mean objects which surround us. A dirty, slovenly dress will exert an evil moral influence upon the child; it will aid in destroying its self-respect; it will incline it to habits which correspond with such a garment. The beautiful scenes through which a child wanders, playing by the sea-shore, or on the mountain-side, will always be remembered; the treasures of shell and seaweed, brought from wonderful ocean caverns, the soft green moss, where the fairies have danced, and the flowers that have sprung up under their footsteps, will leave a trace of beauty, of mystery, and strange happiness wherever its later life may be cast. The senses mingle powerfully in all the influences of childhood. It is not merely the loving of parents, the purity and truthfulness of the family relations, that make home so precious a recollection; there are visions of winter evenings, with the curtains drawn, the fire blazing, and gay voices or wonderful picture-books; there are summer rambles in the cool evening, when the delicious night-breeze fanned the cheek, and we gazed into the heavens to search out the bright stars. It is, then, most important in educating children to guard the senses from evil influences, to furnish them with pure and beautiful objects. Each separate sense should preserve its acuteness of faculty: the eye should not be injured by resting on a vulgar confusion of colours, or clumsy, ill-proportioned forms; the ear should not be falsified by discordant sounds, and harsh, unloving voices; the nose should not be a receptacle for impure odours: each sense should be preserved in its purity, and the objects

supplied to them should be filled with moral suggestion and true sentiment; the house, the dress, the food, may preach to the child through its senses, and aid its growth in quite another way from the protection afforded, or the good blood which feeds its organs.—*Blackwell's Laws of Life*.

AN AMERICAN NOTION.

[Return to Table of Contents](#)

In this book-making age, every man rushes to the press with his small morsel of imbecility, his little piece of favourite nonsense, and is not easy till he sees his impertinence stitched in blue covers. Some one possesses the vivacity of a harlequin—he is fuddled with animal spirits, giddy with constitutional joy; in such a state, he must write or burst: a discharge of ink is an evacuation absolutely necessary to avoid fatal and plethoric congestion. A musty and limited pedant yellows himself a little among rolls and records, plunders a few libraries, and, lo! we have an entire new work by the learned Mr Dunce, and that after an incubation of only one month. He is, perhaps, a braggadocio of minuteness, a swaggering chronologer, a man bristling up with small facts, prurient with dates, wantoning in obsolete evidence. No matter; there are plenty of newspapers who are constantly lavishing their praises upon small men and bad books. A mendacious press will puff the book through a brief season, and then it will go to feed the devouring maw of the past.—*New York Chronicle*.

NEW PERIODICAL.

CHAMBERS'S
REPOSITORY
OF
INSTRUCTIVE AND AMUSING TRACTS.

The First Tract to be issued on the First Saturday of November.

THE success which has hitherto attended Messrs Chambers's exertions in the preparation of a cheap and improving kind of literature, induces them to announce a new literary periodical, under the title of REPOSITORY OF INSTRUCTIVE AND AMUSING TRACTS. This Work, to resemble in some respects

the MISCELLANY OF TRACTS completed a few years ago, will aim at a higher, though not less popular tone, and satisfy, it is hoped, the new requirements of the day in regard to literary elegance. In carrying on the undertaking, Messrs CHAMBERS will be assisted by skilled writers in various departments; and as the whole of the Tracts will be under their own editorial supervision, they can with confidence offer the REPOSITORY as a fitting companion to the family circle. Each of the Tracts will embrace a single subject, varied to suit different ages and tastes. An important object will be to furnish innocent entertainment, mingled with correct information and sound instruction, under the control of good taste, and free, as far as possible, from controversial matter. The Editors, therefore, trust that the present Series of Tracts will take as prominent a part as the former in that department of the great business of educating the People which is committed to the untrammelled agency of the Press.

The REPOSITORY will consist of a series of Penny Sheets, issued Weekly; Four to constitute a Monthly Part, at *Fivepence*, and Eight to form a Two-Monthly Volume, neatly done up in coloured fancy boards, at *One Shilling*. Where it appears desirable, Wood-engravings will be introduced. Each Volume will possess a neat engraved Title-page.

Printed and Published by W. and R. CHAMBERS, High Street, Edinburgh. Also sold by W. S. ORR, Amen Corner, London; D. N. CHAMBERS, 55 West Nile Street, Glasgow; and J. M'GLASHAN, 50 Upper Sackville Street, Dublin. —Advertisements for Monthly Parts are requested to be sent to MAXWELL, & Co., 31 Nicholas Lane, Lombard Street, London, to whom all applications respecting their insertion must be made.

*** END OF THE PROJECT GUTENBERG EBOOK CHAMBERS'S
EDINBURGH JOURNAL, NO. 461 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without

paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for

generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these

requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation,

how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.